Village of Cortland, Nebraska
Zoning Regulations

2026-11-11

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1 General Provisions

1.1 Title

This Ordinance shall be known, referred to, and cited as the Zoning Ordinance of the Village of Cortland, Nebraska.

1.2 Jurisdiction

The provisions of these Regulations shall apply within the planning jurisdiction of Cortland, Nebraska, as established on the map entitled "The Official Zoning Map of the Village of Cortland, Nebraska." The jurisdiction includes the zoning areas within and up to one mile of the corporate limits of the Village of Cortland, Nebraska.

1.3 Purpose

In pursuance of the authority conferred by Sections 19-901 through 19-914 of Nebraska Statutes as amended, this ordinance is enacted for the purpose of promoting the health, safety, convenience, order, prosperity and welfare of the present and future inhabitants in the Village of Cortland by regulating and restricting the height, number of stories, and size of buildings and other structures, the size of yards, courts, and other open spaces, and the location and use of buildings, structures and land for trade, industry, residence, or other purposes in accordance with the Cortland Comprehensive Plan and the zoning maps adopted herewith.

2 Application of Regulations

2.1 General

The zoning regulations set forth by this Ordinance within each district shall be minimum regulations and shall apply uniformly to each class or kind of structure or land, except as hereinafter provided.

2.2 Zoning Affects Every Building and Use

No building, structure, or land shall hereafter be used or occupied, and no building or structure or part thereof shall hereafter be erected, constructed, moved or structurally altered except in conformity with all of the zoning regulations herein specified for the district in which it is located.

2.3 Yard and Lot Reduction Prohibited

No yard or lot existing at the time of passage of this ordinance shall be reduced by private action in dimension or area below the minimum requirements set herein. Yards or lots created after the effective date of this ordinance shall meet the minimum requirements established by these regulations. "It shall be required that any alteration of existing lot dimensions be approved by the Planning Commission and the Village Board prior to being sold or recorded."

2.4 Minimum Requirements

In their interpretation and application, the provisions of this ordinance shall be held to be minimum requirements, adopted for the promotion of the public health, safety, morals, or general welfare. Where applicable, Municipal, State, or Federal standards which are more restrictive than those contained herein, the more restrictive standards shall apply.

2.5 Nonconformities

Nonconformities; Intent. Nonconformities are of three types: nonconforming lots of record, nonconforming structures and nonconforming uses.

2.5.1 Nonconforming Lots of Record

The Zoning Administrator may issue a Permit for any nonconforming lot of record provided that:

Said lot is shown by a recorded plat or deed to have been owned separately and individually from adjoining tracts of land at a time when the creation of a lot of such size and width at such location would not have been prohibited, and

Said lot has remained in separate and individual ownership from adjoining tracts of land continuously during the entire time that the creation of such lot has been prohibited by the zoning regulation, and

Said lot can meet all required yard regulations for the district in which it is located.

2.5.2 Nonconforming Structures

Authority to Continue: Any structure which is devoted to a use which is permitted in the zoning district in which it is located, but which is located on a lot which does not comply with the use regulations and/or the applicable yard and height regulations may be continued, so long as it remains otherwise lawful.

Enlargement, Repair, Alterations: Any nonconforming structure may be enlarged, maintained, repaired, remodeled, or rebuilt; provided, however, that no such enlargement, maintenance, repair or remodeling shall either create any additional nonconformity or increase the degree of existing nonconformity of all or any part of such structure.

Damage or Destruction: In the event any nonconforming structure is damaged or destroyed, by any means, to the extent of more than 75 percent of its assessed fair market value, such structure shall not be restored unless it shall thereafter conform to the regulations for the zoning district in which it is located. When a structure is damaged to the extent of 75 percent or less of its assessed fair market value, no repairs or restoration shall be made unless a building permit is obtained within six (6) months, and restoration is actually begun one (1) year after the date of such partial destruction and is diligently pursued to completion. If the

non-conforming structure is destroyed by fire/natural disasters, the structure can be built within the previously existing building footprint.

Moving: No nonconforming structure shall be moved in whole or in part for any distance whatever, to any other location on the same or any other lot unless the entire structure shall thereafter conform to the regulations of the zoning district in which it is located after being moved.

2.5.3 Nonconforming Uses

Authority to Continue Any lawfully existing nonconforming use of part or all of a structure or any lawfully existing nonconforming use of land, not involving a structure or only involving a structure which is accessory to such use or land, may be continued, so long as otherwise lawful.

Ordinary Repair and Maintenance:

Normal maintenance and incidental repair, or replacement, installation or relocation of nonbearing walls, nonbearing partitions, fixtures, wiring or plumbing, water and/or waste disposal systems, may be performed on any structure or system that is devoted in whole or in part to a nonconforming use.

Nothing in these regulations shall be deemed to prevent the strengthening or restoring to a safe condition of a structure in accordance with an order of a public official in charge of protecting the public safety who declares such structure to be unsafe and orders its restoration to a safe condition.

Extension: A nonconforming use shall not be extended, enlarged, or increased in intensity. Such prohibited activities shall include, without being limited to the extension of such use to any structure or land area other than that occupied by such nonconforming use on the effective date of these Regulations (or on the effective date of subsequent amendments hereto that cause such use to become nonconforming).

Enlargement: No structure that is devoted in whole or in part to a nonconforming use shall be enlarged or added to in any manner unless such structure and the use thereof shall thereafter conform to the regulations of the district in which it is located.

Damage or Destruction: In the event that a nonconforming building or use is damaged to the extent of more than sixty (60) percent of its reasonable replacement value, the property shall conform to the zone in which it is located.

Moving: No structure that is devoted in whole or in part to a nonconforming use and nonconforming use of land shall be moved in whole or in part for any distance

whatever, to any location on the same or any other lot, unless the entire structure and the use thereof or the use of land shall thereafter conform to all regulations of the zoning district in which it is located after being so moved.

Change in Use: If no external structural alterations are made which will expand the area or change the dimensions of the existing structure, any nonconforming use of a structure, or structure and premises, may be changed to another nonconforming use provided that the governing body after receiving a recommendation from the Planning Commission, by making findings in the specific case, shall find that the proposed use is more appropriate to the district than the existing nonconforming use. More appropriate shall mean creating less traffic, noise, glare, odor or other characteristics of the proposed use. In permitting such change, the governing body may require appropriate conditions and safeguards to protect surrounding areas and properties. Once such use has changed, it may no longer be returned to the original use or any other less appropriate use.

Abandonment or Discontinuance: When a nonconforming use is discontinued or abandoned, for a period of twelve (12) consecutive months, such use shall not thereafter be re-established or resumed, and any subsequent use or occupancy of such land shall comply with the regulations of the zoning district in which such land is located.

Nonconforming Accessory Uses: No use which is accessory to a principal nonconforming use shall continue after such principal use shall cease or terminate.

3 General Definitions

3.1 General Provisions

The following rules of construction shall apply unless inconsistent with the plain meaning of the context of this Ordinance.

3.1.1 Tense

Words used in the present tense include the future tense.

3.1.2 Number

Words used in the singular include the plural, and words used in the plural include the singular.

3.1.3 Shall and May

The word “shall” is mandatory; the word “may” is permissive.

3.1.4 Headings

In the event that there is any conflict or inconsistency between the heading of an article, section or paragraph of this Ordinance and the context thereof, the said heading shall not be deemed to affect the scope, meaning or intent of such context.

3.2 General Terminology

The word "Village" shall mean the Village of Cortland, Nebraska. The word "Governing Body" shall mean the Village Board of Cortland, Nebraska. The words "Planning Commission" shall mean the Planning Commission of Cortland duly appointed by the governing body of the Village of Cortland.

Words or terms not herein defined shall have their ordinary meaning in relation to the context.

3.3 Definition

For the purpose of this Ordinance certain words and terms used herein are defined as follows;

3.3.1 Accessory Building

Any detached subordinate (in size and use) building which serves a function customarily incidental to that of the main building or main use of the premises. All accessory building shall be affixed to the ground. Accessory buildings not securely fastened to the ground are prohibited unless they are residential, agricultural or recreational storage sheds.

3.3.2 Accessory Use of Building

A subordinate building or use which customarily is incidental to that of the main or principal building or use of the premises, which accessory use does not alter the principal use of the subject lot or affect other properties in the district.

Customary accessory uses include, but are not limited to, tennis courts, swimming pools, detached garages, garden houses, antenna/satellite dishes, amateur radio or land mobile towers of less than 100 feet, and residential, agricultural and recreational storage sheds. Garages or other accessory uses attached to the principal structure shall be considered a part thereof and meet the requirements of the principle structure.

Accessory building or use shall not include a commercial trailer as defined in section Nebraska RS 30-301(5) that is placed on property after its wheels, axles, springs and towing tongue have been removed, or a commercial storage container, that is intended to be used for shelter, protection, and storage of property.

3.3.3 Accessory Structure

Detached subordinate (in size and use) structure located on the same lot with the principal structure, the use of which is incidental and accessory to that of the principal structure. Common accessory structures include but are not limited to aboveground swimming pools, trampolines, picnic shelter, and play equipment.

3.3.4 Adult Entertainment Establishment, Live

Any building or portion of a building which contains any exhibition or dance wherein any employee or entertainer is unclothed or in such attire, costume or clothing so as to expose to view any portion of the female breast below the areola, or male or female genitals, vulva, anus and/or buttocks, or any portion of the pubic hair and which exhibition or dance is for the benefit of a member or members of the adult public, or advertised for the use or benefit of a member of the adult public, held, conducted, operated or maintained for profit, direct or indirect.

3.3.5 Adult-Oriented Entertainment

Any exhibition, performance or dance of any type conducted in a premise where such exhibition, performance or dance is distinguished or characterized by a predominant emphasis on the depiction, description, simulation or relation to the following sexual activities:

a. Human genitals in a state of sexual stimulation or arousal;
b. Acts of human masturbation, sexual intercourse or sodomy; or
c. Fondling or other erotic touching of human genitals, pubic region, buttocks or female breast; or
d. Any exhibition, performance or dance which is intended to sexually stimulate any member of the public and which is conducted on a regular basis or as a substantial part of the premises' activity. This includes, but is not limited to, any such exhibition, performance or dance performed for, arranged with or engaged in with fewer than all members of the public on the premises at the time, with separate consideration paid, either directly or indirectly, for such performance, exhibition or dance and which is commonly referred to as table dancing, couch dancing, taxi dancing, lap dancing, private dancing or straddle dancing.

3.3.6 Adult Retail

An enclosed building or any portion thereof which, for money or any other form of consideration, devotes a significant or substantial portion of stock in trade to the sale, exchange, rental, loan, trade, transfer or viewing of "adult-oriented merchandise." For purposes of this definition, a retail establishment devotes a significant or substantial portion of its stock in trade to adult-oriented merchandise if the sale, exchange, rental, loan, trade, transfer or viewing of such adult-oriented merchandise is clearly material to the economic viability of the business. It is presumed that such adult-oriented merchandise accounts for any one or more of the following:

a. Thirty percent or more of the retail dollar value of gross sales over any quarterly period;
b. Thirty percent or more of the floor area of the store open to the public;
c. Thirty percent or more of the retail dollar value of all merchandise displayed in the store;
d. Thirty percent or more of the store's inventory (whether measured by retail dollar value or number of items); or
e. Thirty percent or more of the store's stock in trade.
f. In no event shall a retailer whose transactions only incidentally or marginally

3.3.7 Agricultural Farm or Operation

A tract of land or a combination of tracts of land utilized primarily for agricultural purposes which either singularly or jointly consist of at least ten (10) acres and which produces one thousand dollars ($1,000) or more of farm products each year.

3.3.8 Alley

A dedicated public or private right-of-way, other than a street, which provides only a secondary means of access to abutting property, which is no less than twenty (20) feet in width. Buildings facing an ally shall not be construed as satisfying the requirements of this regulation related to frontage on a dedicated street.

3.3.9 Buffer Yard

An area of land that separates two zoning districts and/or land uses that act to soften or mitigate the effects of one use on the other.

3.3.10 Building

An enclosed structure, anchored to permanent foundation, and having exterior or party walls and a roof, designed for the shelter of persons, animals or property. When divided by other than common or contiguous walls, each portion or section of such building shall be regarded as a separate building, except that two buildings connected by a breezeway shall be deemed one building. "Building" includes "structure."

3.3.11 Buildable Area

The portion of a lot remaining after required yards have been provided.

3.3.12 Building Height

The vertical distance to the highest point of the roofs; to the deck line of mansard roofs; and to the average height between eaves and the ridge for gable, hip, and gambrel roofs, measured from the curb level if the building is not more than 10 feet from the front lot line or from the grade in all other cases.

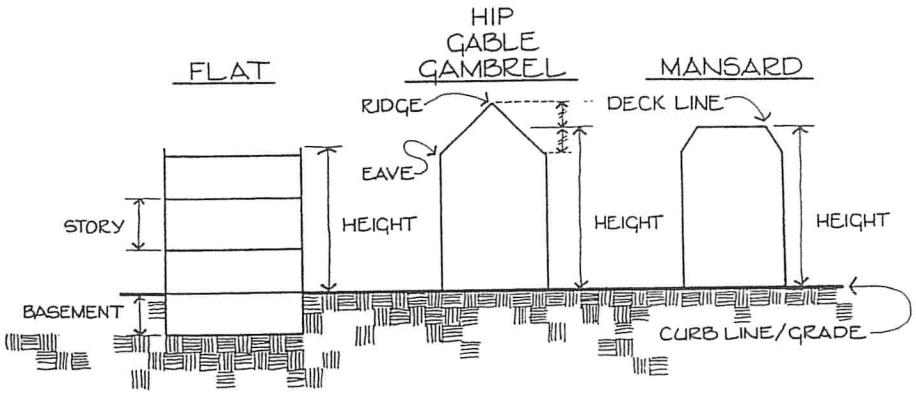


Figure 3.1: Source: A Survey of Zoning Definitions, American Planning Association, 1989

3.3.13 Camp Grounds

Any premises where two (2) or more camping units are parked/placed for camping purposes, or any premises used or set apart for supplying to the public, camping

space for two (2) or more camping units for camping purposes, which include any buildings, structures, vehicles or enclosures used or intended for use or intended wholly or in part for the accommodation of transient campers.

3.3.14 Child Care Center

A facility which is or should be licensed by the Nebraska Department of Health and Human Services under the authority of Sections 71-1908 through 71-1918, Revised Statutes of Nebraska, as provided and defined under the Title 474 of the Nebraska Administrative Code, Chapter 6, Section 002.

3.3.15 Child Care Home

A private home providing care (for children) for compensation which is or should be licensed by the Nebraska Department of Health and Human Services.

3.3.16 Commercial Condo

One of a group or row of no less than two (2) attached commercial units designed and built as a single structure in which the individual unit may or may not be owned separately. For the purpose of setback regulations, the building containing the row or group of commercial units shall be considered one building.

3.3.17 Conditional Use

A use which is allowed in a zone when specified conditions have been complied with as identified for each district as a conditional use. A conditional use permit is reviewed and issued by the zoning administrator.

3.3.18 Corner Lot

A lot located at the intersection of two (2) or more streets at an angle of not more than 135 degrees. If the angle is greater than 135 degrees, the lot shall be considered an "Interior Lot." On corner lots, the yard labeled as the front yard shall have a 25' setback and the adjoining side yard shall have a 15' setback.

3.3.19 Data Center

A facility used primarily for the storage, management, processing, and transmission of digital data and that houses computer or network equipment, systems, servers, appliances, and other associated components related to digital data storage, processing, and related operations. Data center uses include data storage facilities, server farms, cryptocurrency mining operations, artificial intelligence training or processing, image processing, cloud computing, email servicing, and similar uses.

3.3.20 Dwelling

Any building or portion thereof which is designed and used exclusively for residential purposes.

3.3.20.1 Dwelling, Multifamily

A building or portion thereof used for occupancy by three (3) or more families living independently of each other and containing three (3) or more dwelling units.

3.3.20.2 Dwelling, Single Family

A dwelling having accommodations for and occupied by one (1) family.

3.3.20.3 Dwelling, Two-Family

A residential building containing two (2) dwelling units entirely surrounded by open space on the same lot.

3.3.20.4 Dwelling Unit

Consists of one or more rooms which are arranged, designed or used as a separate living quarters by a single family or other group of persons living together as a household or a person living alone. Individual bathrooms and complete kitchen facilities, permanently installed, shall always be included for each "dwelling unit".

3.3.21 Easement

A grant by the property owner to the public, a corporation or persons for the use of a tract of land for a specific purpose or purposes.

3.3.22 Ethanol Plant

(Also synonymous with "Alcohol Plant") a facility where the conversion of biomass into an alcohol fuel product is undertaken. The facility also includes the processing of certain by-products resulting from the fermentation and distillation process. This building definition is not synonymous with any establishment, such as a bar, pub, or tavern, where the sale and consumption of alcoholic beverages is permitted.

3.3.23 Farm Residence

Residential dwellings located on a farm, including mobile homes appurtenant to agricultural operations including the living quarters for persons employed on the premises.

3.3.24 Farmstead

Any building site that includes at least two (2) buildings that have combined assessed valuation for tax purposes of at least $5,000 as of the date on which these regulations go into effect.

3.3.25 Fence, Open

A fence, including gate, which has, for each one foot (1') wide segment extending over the entire length and height of fence, fifty percent (50%) or more of the surface area in open spaces which affords direct views through the fence.

3.3.26 Fence, Solid

Any fence which does not qualify as an open fence and provides complete or nearly complete privacy and security by preventing visibility through the structure. Solid fences are typically constructed using heavy duty materials such as wood, vinyl, metal, or composite panels, and they have no gaps between the slats or boards.

3.3.27 Group Home

Means a facility which houses more than five (5) but less than sixteen (16) persons who are unrelated by blood, marriage or adoption. Those facilities may offer, in addition to lodging, accommodations, meals, resident support services, counseling, guidance and varying levels of medical care. Such facility shall be licensed or approved by the State of Nebraska or other appropriate agency.

3.3.28 Heavy Industrial

A subcategory of industrial with allowed uses for chemical plants, refineries, heavy manufacturing, and reasonably similar uses. Setbacks can range from 500 feet to 1,000+ feet depending on emissions, safety, and environmental impact.

3.3.29 Home Occupation

An occupation or activity carried on within the dwelling or accessory building by a member of the family residing on the premises, which occupation or activity is incidental and secondary to the residential occupancy and does not change the residential character nor infringe upon the right of neighboring residents to enjoy a peaceful occupancy of their homes.

3.3.30 Industrial Condo

One of a group or row of no less than two (2) attached industrial units designed and built as a single structure in which the individual unit may or may not be owned separately. For the purpose of setback regulations, the building containing the row or group of industrial units shall be considered one building.

3.3.31 Light Industrial

A subcategory of industrial with allowed uses for warehouses, small manufacturing, offices, and reasonably similar uses. These typically include 50 to 100 feet of buffer space from residential property lines, and can include landscaping (trees, berms, fences) to soften visual and noise impacts.

3.3.32 Livestock, Confinement Facilities/Operations

Shall mean any building(s), lot(s), pen(s), pool(s) or pond(s) or other confined spaces, which normally are not used for raising crops or grazing animals, which are designed and/or used for ongoing confined raising, feeding or management of animals for more than 180 consecutive days.

3.3.33 Lot

A parcel of land occupied or intended for occupation by a use permitted in this Ordinance and fronting upon a street or road.

3.3.33.1 Lot, Corner

A lot abutting two or more streets or roads at their intersection.

3.3.33.2 Lot Depth

The average horizontal distance between the front and rear lot lines.

3.3.33.3 Lot Frontage

The front of a lot shall be construed to be the portion nearest the street or road.

3.3.33.4 Lot of Record

A lot of which is part of a subdivision recorded in the Office of the Register of Deeds, or a lot or parcel described by metes and bounds the description of which has been so recorded.

3.3.33.5 Lot Width

The distance on a horizontal plane between the side lot lines of a lot, measured at right angles to the line establishing the lot depth at the established building setback line.

3.3.34 Manufactured Home

A factory-built structure which is to be used as a place for human habitation, which is not constructed or equipped with a permanent hitch or other device allowing it to be moved other than to a permanent site, which does not have permanently attached to its body or frame any wheels or axles, and which bears a label certifying that it was built to compliance with National Manufactured Home Construction and Safety Standards, 24 C.F.R. 3280 et seq., promulgated by the United States Department of Housing and Urban Development, or a modular housing unit as defined in Section 71-1557 of the Nebraska Revised Statutes bearing the seal of the Department of Health and Human Service System.

3.3.35 Medium Industrial

A subcategory of industrial with allowed uses for fabrication, logistics centers, food processing, and reasonably similar uses. These require 100 to 300 (or more) feet of buffer space from residential property lines, and may include sound walls, vegetative buffers, and restricted truck routes.

3.3.36 Mini-Storage Facility

A storage facility containing individual compartments or lockers designed to serve multiple persons and small businesses. Storage bays shall not be interconnected by interior doors or other interior means providing access from one storage bay to another. "Mini-Storage Facility," for the purpose of these zoning regulations, shall be considered synonymous with "self-storage facility" or other reasonably comparable uses.

3.3.37 Mobile Home

A year-round, transportable structures which is a single family dwelling unit suitable for permanent, more than thirty (30) days of living quarters, more than eight (8) feet wide and forty (40) feet in length and built to be towed on its own chassis with or without a permanent foundation when connected to the required utilities. This portable dwelling may consist of one (1) or more units that can be telescoped when towed and expanded later for additional capacity, or two (2) or more units, separately towable but designed to be joined as one (1) integral unit. Nothing in this definition shall be construed so as to include prefabricated, modular, precut dwelling units or these manufactured in sections or parts away from the site and transported thereto for assembly.

3.3.38 Mobile Home Park

Any area of land which two (2) or more mobile homes are parked, connected to utilities and used by one (1) or more persons for living or sleeping purposes. A mobile home parked in this area can either be placed on permanent foundation or supported only by its wheels, jacks, blocks, or skirtings or a combination of these devices. A mobile home park includes any premises set apart for supplying to the public parking space, either free of charge or for revenue purposes for one (1) or more mobile homes, connected to utilities and used by one (1) ore more persons living, or sleeping purposes and shall include any building, structure, tent, vehicle or enclosure used or intended for use as part of the equipment of such mobile home park.

3.3.39 Modular Home

Any dwelling whose construction consists entirely of or the major portions of its construction consist of a unit or units not fabricated on the final site for the dwelling units, which units are movable or portable until placed on a permanent foundation and connected to utilities. All modular homes shall bear a label certifying that it was built to compliance with the Nebraska Department of Health and Human Services System as established in Section 71-1557 of the Nebraska revised Statutes.

3.3.40 New Commercial Construction

The process of building or erecting a new structure or increasing the existing footprint by more than 400 sf of an existing structure intended for commercial use.

3.3.41 Nonconforming Lot of Record

A lot which is part of a recorded subdivision or a parcel of land, the deed to which was recorded prior to the approval date of this Ordinance and neither said lot nor parcel complies with the lot width or area requirements for any permitted uses in the district in which it is located.

3.3.42 Nonconforming Structure

An existing structure which does not comply with the lot coverage, height or yard requirements which are applicable to new structures in the zoning district in which it is located.

3.3.43 Nonconforming Use

An existing use of a structure or of land which does not comply with the use regulation applicable to new uses in the zoning district in which it is located.

3.3.44 Parking Space, Off-Street

An area, enclosed or unenclosed, sufficient in size to store one automobile, together with a driveway connecting the parking space with a street or road and permitting ingress and egress of an automobile.

3.3.45 Recycling Center

A facility which accepts salvage material limited to paper, aluminum foil, containers made of glass, plastic, metal, aluminum, and paper; and similar household wastes; no hazardous material as defined by state and federal law is accepted; there is no wrecking or dismantling of salvage material and no salvage material is held outside a building.

3.3.46 Recycling Collection Point

A collection point for small refuse items, such as bottles and newspapers, located either in a container or small structure.

3.3.47 Sanitary Landfill

A lot or parcel of land used primarily for the disposal, abandonment, dumping, burial or burning of garbage, sewage, trash, refuse, junk, discarded machinery or motor vehicles, or parts thereof, or other waste, and which is in conformance with the requirements of the Nebraska Department of Health and Human Service System.

3.3.48 Sanitary Transfer Station

A collection point for temporary storage of refuse. No processing of refuse would be allowed. The transfer station must be in conformance with the requirements of the Nebraska Department of Health and Human Service System.

3.3.49 Salvage or Junkyard

A place where waste, discarded or salvaged metals, building materials, paper, textiles, used plumbing fixtures, abandoned or inoperable motor vehicles or parts thereof, and other used materials are bought, sold, exchanged, stored, baled or cleaned; and places or yards for the storage of salvaged metal, materials and equipment; but not including pawn shops and establishments for the sale, purchase or storage of used cars or trucks presently in operable condition, boats or trailers presently in operable condition, and used furniture and household equipment in usable condition and not including the processing of used, discarded or salvaged material as part of manufacturing operations.

3.3.50 Shipping Container/Storage or Shipping Conex

An industrial, standardized reusable metal vessel that was originally, specifically, or formerly designed for or used in the packing, shipping, movement or transportation of freight, articles, goods, or commodities by commercial trucks, trains, and/or ships. Shipping containers as defined are not railroad cars, truck vans,

converted mobile homes, travel trailers, recreational vehicles, bus bodies, vehicles, and similar prefabricated items and structures originally built for purposes other than storage of goods and materials. Shipping containers, as defined, also include a POD, a portable storage container designed and intended for the temporary placement upon property for the onsite storage of household or other goods, with a size typically not exceeding 16’ × 8’ × 8.

3.3.51 Special Use Permit

A written permit issued with authorization of the applicable governing body. The special permit provides permission under specific conditions to make certain special uses of land in certain zoning districts as stipulated under permitted special uses in each of the district zoning regulations.

3.3.52 Street

All property acquired or dedicated to the public and accepted by the appropriate governmental agencies for street purposes.

3.3.52.1 Street, Center Line

A line midway between street lines.

3.3.52.2 Street Line

A dividing line between a lot, tract, or parcel of land and the contiguous street. The right-of-way line of a street.

3.3.53 Structure

Anything constructed or erected, the use of which requires permanent location on the ground or attachment to something having a permanent location on the ground, but not including fences or public items such as utility poles, street light fixtures, street signs, bridges and culverts.

3.3.54 Structural Alteration

Any change to the supporting members of a structure including foundations, bearing walls, or partitions, columns, beams, girders or any structural change in the roof.

3.3.55 Telecommunications Tower

A structure that is constructed or used to transmit radio energy, or that is constructed or used for the primary purpose of supporting antennas to transmit and/or receive radio energy, and any antennas and other appurtenances mounted thereon, from the time construction of the supporting structure begins until such time as the supporting structure is dismantled. This definition also applies to "cell tower", "radio tower", "antenna structure", or other feasibly equivalent nouns. These structures shall conform to definitions within the most recent International Building Code, ANSI/TIA Provisions, and Federal Aviation Administration requirements.

3.3.56 Townhouse

One of a group or row of not less than two (2) nor more than twelve (12) attached, single family dwellings designed and built as a single structure facing upon a street in which the individual townhouse may or may not be owned separately. For the purpose of the side yard regulations, the structure containing the row or group of townhouses shall be considered as one building occupying a single lot.

3.3.57 Trailer

A vehicle without its own motor power that is designed to be towed or hauled by a motor vehicle. Trailers are used for transporting or storing goods, materials, or vehicles and may include utility trailers, boat trailers, or livestock trailers.

3.3.58 Variance

A variance is a relaxation of the terms of the zoning ordinance where such variance will not be contrary to the public interest and where, owing to conditions peculiar to the property, and not the result of the actions of the applicant, a literal enforcement of the ordinance would result in unnecessary and undue hardship.

3.3.59 Vehicle

Generally defined as any device or machine that is designed or used for transporting people or goods from one place to another. This includes motorized and non-motorized means of transportation.

3.3.60 Yard

A required open space, other than a court, unoccupied and unobstructed by any structure or portion of a structure, provided, however, that fences, walls, poles, posts, and other customary yards accessories, ornaments, and furniture may be permitted in any yard subject to the district regulations.

3.3.61 Yard, Front

A yard extending from the front lot line adjoining a public street to the front of the building between side lot lines.

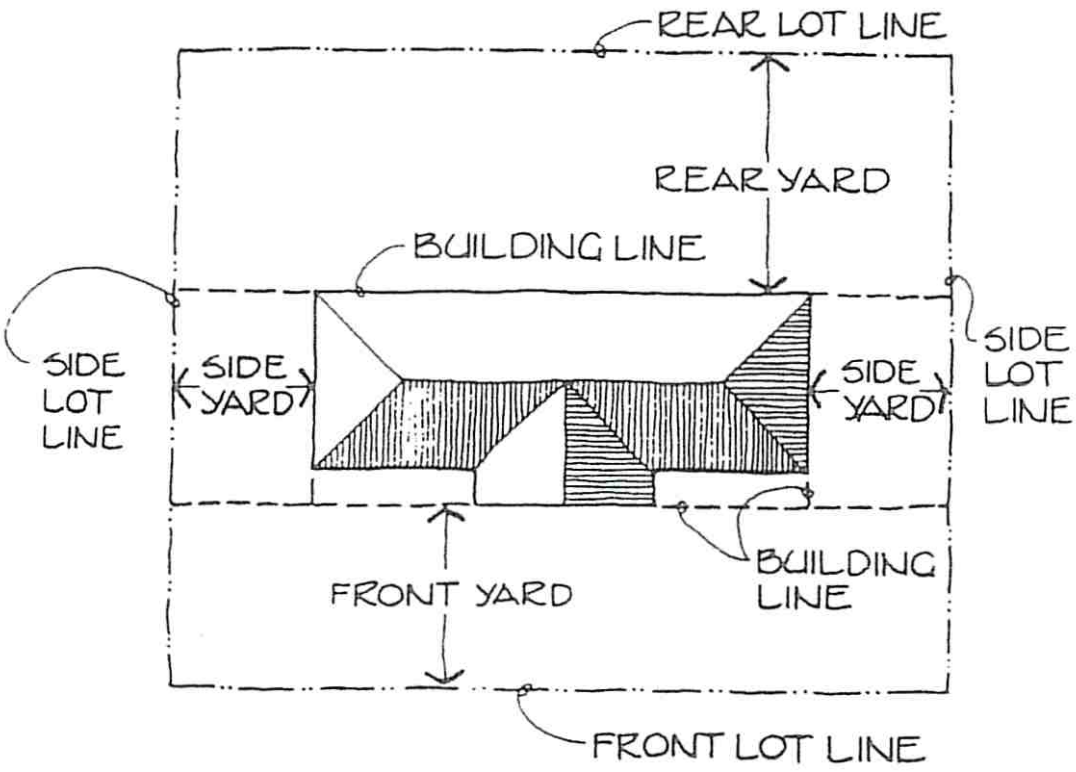


Figure 3.2: Source: A Survey of Zoning Definitions, American Planning Association, 1989

3.3.62 Yard, Rear

A yard extending between side lot lines and measured horizontally at right angles to the rear lot line from the rear lot to the nearest point of the main building.

3.3.63 Yard, Required

The required minimum open space between the property line and the yard line. The required yard shall contain no building or structure other than the projection of the usual steps, or open porches, or as otherwise provided in these regulations.

3.3.64 Yard, Side

A yard between a building and the side lot line measured horizontally at right angles to the side lot line from the side lot line to the nearest point of the main building.

3.3.65 Zoning Administrator

The person or persons authorized and empowered by the governing body to administer the requirements of the zoning regulations.

3.3.66 Zoning Board of Adjustment

The legally appointed board empowered to hear and decide appeals from, and to provide interpretations of, the terms of the zoning ordinance and official maps as defined within this ordinance and in accordance with the laws of the State of Nebraska.

3.3.67 Zoning District

The term "Zoning District" means an area delineated on a zoning map for which uniform use regulations are specified.

3.3.68 Zoning Map

The term "Zoning Map" means a map or maps officially enacted by the governing body as part of this ordinance showing the boundaries of a zoning district or districts, a copy or copies of which, certified to have been enacted as provided by law, is filed in the office of the Village Clerk as an official record of the Village.

4 Establishment and Designation of Districts

4.1 Planning Commission Recommendations

It shall be a purpose of the Planning Commission to recommend the boundaries of the various original districts and appropriate regulations to be enforced therein. The Planning Commission shall make a preliminary report and hold public hearings thereon before submitting its final report, and the governing body shall not hold its public hearings or take action until it has received the final report of the Planning Commission.

4.2 Districts Created

For the purpose of this Ordinance, there are hereby created zoning districts, as named and described in Article 5 of this Ordinance.

AG-1 Agriculture Residential District

AG-2 Agriculture District

R-1 Residential Single Family District

R-2 Residential Single and Multifamily District

R-3 Residential Mobile Home/Single and Multifamily District

C-1 General Commercial District

C-2 Highway Commercial District

I Industrial

4.3 Official Zoning Map

The boundaries of the district are shown upon maps, which are made a part hereof by reference, which map(s) are designated as the Village of Cortland Zoning District Map, dated December 5, 2001 and signed by the Chairperson and attested by the Village Clerk and hereinafter referred to as the "Official Zoning Maps."

The signed copy of the Zoning Map(s) containing the zoning districts designated at the time of adoption of this ordinance shall be maintained in the office of the Village Clerk for the use and benefit of the public.

If in accordance with the provisions of this ordinance, changes are made in the district boundaries or other matter portrayed on the Official Zoning Map(s), such changes shall be entered on the appropriate part of the Official Zoning Map(s) promptly after the amendment has been approved by the governing body, with an entry on the Official Zoning Map(s) as follows:

"On (date), by official action of the Village Board, the following change was made in the Official Zoning Map(s) (brief description of the nature of the change), which entry shall be signed by the Chairperson and attested by the Village Clerk."

No amendment to this resolution/ ordinance which involves matter portrayed on the Official Zoning Map(s) shall become effective until after such change and entry have been made on said map(s).

No changes of any nature shall be made in the Official Zoning Map(s) or matter shown thereon except in conformity with the procedures set forth in this ordinance.

In the event that the Official Zoning Map(s) become damaged, destroyed, lost or difficult to interpret, the Village Board, may, by ordinance, adopt a new Official Zoning Map(s) which shall supersede the prior Official Zoning Map(s). The new Official Zoning Map(s) may correct drafting or other errors or omissions in the prior Official Zoning Map(s), but no such correction shall have the effect of amending the original Official Zoning Map(s) or any subsequent amendment thereof.

4.4 Rules for Interpretation of District Boundaries

Where uncertainty exists as to the boundaries of districts as shown on the Official Zoning Map(s), the following rules shall apply:

Boundaries indicated as approximately following the center lines of streets, highways, or alleys shall be construed to follow such center lines;

Boundaries indicated as approximately following platted lot lines shall be construed as following such lot lines;

Boundaries indicated as approximately following Village limits shall be construed as following such Village limits;

Boundaries indicated as following railroad lines shall be construed to be midway between the main tracks;

Boundaries indicated as parallel to or extension of features indicated in subsection 1 through 4 above shall be so construed. Distances not specifically indicated on the Official Zoning Map(s) shall be determined by the scale of the map;

Where physical or cultural features existing on the ground are at variance with those shown on the Official Zoning Map(s), or in other circumstances not covered by subsection 1 through 5 above, the Board of Zoning Adjustment shall interpret the district boundaries;

Where a district boundary line divides a lot which was in single ownership at the time of passage of this ordinance the Board of Zoning Adjustment may permit, as an exception, the extension of the regulations for either portion of the lot not to exceed one hundred and fifty (150) feet beyond the district line into the remaining portion of the lot.

5 Zoning Districts

5.1 AG-1 Agriculture Residential District

5.1.1 Intent

This District is intended for general agricultural and residential purposes within one-half (1/2) mile of the corporate limits of the Village of Cortland.

5.1.2 Permitted Principal Uses and Structures

The following shall be permitted as uses by right:

Single family dwellings, ranch and farm residences;

General farming and ranching activities, excluding any expansion of existing or development of livestock confinement facilities/operations.

Public facilities and utility distribution systems;

One additional single family, ranch and farm residence for the purpose of housing relatives or agricultural workers; and

Churches, places of worship and cemeteries.

5.1.3 Permitted Accessory Uses and Structures

The following accessory uses and structures shall be permitted:

Accessory uses and structures normally appurtenant to the permitted uses and structures and to uses and structures permitted as special uses;

Home occupations in accordance with Article 8.2; and

Roadside stands for the sale of agricultural produce grown on the agricultural farm or operation.

5.1.4 Permitted Special Uses

A building or premise may be used for the following purpose in the "AG-1" Agricultural District if a special permit for such use has been obtained in accordance with Article 6 of these regulations.

Sewage disposal and water systems, including agricultural irrigation wells;

Public and private uses including parks, playgrounds, golf courses, campgrounds, recreation use, riding stables and dude ranches;

Flood, erosion and sediment control projects

Telecommunications towers and stations, including amateur radio or land mobile towers of more than 100 feet when in conformance with the following:

Towers shall be located at the most restrictive distance of:

i. The setback requirements in Article 5.8.6
ii. A minimum distance of twice the height of the tower from adjacent dwellings or structures other than those associated with the tower facility.

Towers shall be a minimum distance from any street, county road, or federal highway of equal to or greater than the height of the tower measured from the rightof-way line.

Towers shall have direct frontage on, or direct access to, an improved street, country or township road (not including dirt or minimum maintenance roads).

Towers must also comply with the most recent International Building Code, ANSI/TIA provisions, and Federal Aviation Administration requirements.

Wind generation towers shall be located a minimum distance of twice the height of the tower from adjacent dwellings or structures other than those associated with the tower facility.

Bed and breakfast establishments;

Salvage or junk yard in accordance with Section 6.3;

Mineral extraction, which shall include the following: oil wells, sand and gravel extraction and quarries;

Expansion of existing or development of new livestock confinement facility or operation; Other Conditions include:

Tract of land must be located at least one-eighth (1/8) mile from any residence or commercial or industrial facility, or church or school, or any other facility operated

and/or utilized by the general public other than the residence of the owner and/or operator of the subject facility; and

Total limit of livestock at one facility located within the AG-1 Agricultural District shall not exceed a combination of 50 head.

Commercial, manufacturing and/or industrial operations; and

Similar uses to those listed above that are determined by the Village Board after review and recommendaiton of approval by the Planning Commission.

5.1.5 Prohibited Uses and Structures

All other uses and structures which are not specially permitted or not permissible as special uses shall be prohibited from the AG-1 Agricultural District.

5.1.6 Special Regulation

Provisions must be made for disposal of wastes in accordance with local and state regulations.

5.1.7 Minimum Lot Requirements

The minimum lot area for AGR uses shall be 10 acres.[1]

5.1.8 Minimum Yard Requirements

No structure shall be placed within two hundred (200) feet of high water mark of waterways in designated district.

5.1.9 Maximum Height

No limitation.

[1] Lots with an existing rural dwelling may have a minimum area of 3 acres.

5.2 AG-2 Agriculture District

5.2.1 Intent

This district is intended for general agricultural starting one-half (1/2) mile from the corporate limits and extending to the one (1) mile planning jurisdiction line of the Village of Cortland.

5.2.2 Permitted Principal Uses and Structures

The following shall be permitted as uses by right:

Single family dwellings, ranch and farm residences;

General farming and ranching activities, excluding any expansion of existing or development of livestock confinement facilities/operations.

Public facilities and utility distribution systems;

One additional single family, ranch and farm residence for the purpose of housing relatives or agricultural workers; and

Churches, places of worship and cemeteries.

5.2.3 Permitted Accessory Uses and Structures

The following accessory uses and structures shall be permitted:

Accessory uses and structures normally appurtenant to the permitted uses and structures and to uses and structures permitted as special uses;

Home occupations in accordance with Article 8.2; and

Roadside stands for the sale of agricultural produce grown on the agricultural farm or operation.

5.2.4 Permitted Special Uses

A building or premises may be used for the following purposes in the "AG-2" Agricultural District if a special permit for such use has been obtained in accordance with Article 6 of these regulations.

Sewage disposal and water systems, including agricultural irrigation wells;

Public and private uses including parks, playgrounds, golf courses, campgrounds, recreation uses, riding stables and dude ranches;

Flood, erosion and sediment control projects;

Broadcast towers and stations, including Amateur Radio or land mobile towers of more than 100 feet when in conformance with the following:

Towers, including wind generation towers, shall be located a minimum distance of twice the height of the tower from adjacent dwellings or structures other than those associated with the tower facility.

Towers shall be a minimum distance from any street, county road or federal highway of equal to or greater than the height of the tower measured from the right-of-way line.

Towers shall have direct frontage on, or direct access to, an improved street, country or township road (not including dirt or minimum maintenance roads).

Towers must comply with the regulations of the Federal Aviation Administration (FAA).

Bed and breakfast establishments;

Salvage or junk yard in accordance with Section 6.3;

Mineral extraction, which shall include the following: oil wells, sand and gravel extraction and quarries;

Expansion of existing or development of new livestock confinement facility or operation;

Other Conditions include:

Tract of land must be located at least one-eighth (1/8) mile from any residence or commercial or industrial facility, or church or school, or any other facility operated and/or utilized by the general public other than the residence of the owner and/or operator of the subject facility; and

Total limit of livestock at one facility located within the AG-2 Agricultural District shall not exceed a combination of 250 head.

Commercial, manufacturing and/or industrial operations; and

Similar uses to those listed above that are determined by the Village Board after review and recommendation of approval by the Planning Commission.

5.2.5 Prohibited Uses and Structures

All other uses and structures which are not specially permitted or not permissible as special uses shall be prohibited form the AGR Agricultural Residential District.

5.2.6 Special Regulation

Provisions must be made for disposal of wastes in accordance with local and state regulations.

5.2.7 Minimum Lot Requirements

The minimum lot area for AGR uses shall be 20 acres.[2]

5.2.8 Minimum Yard Requirements

No structure shall be placed within two hundred (200) feet of high water mark of waterways in designated district.

5.2.9 Maximum Height

No limitation.

[2]Lots with an existing rural dwelling may have a minimum area of 3 acres.

5.3 R-1 Residential Single Family District

5.3.1 Intent

This district is intended to provide for residential uses consisting primarily of single family dwelling units and accessory structures by also including the permitted uses set forth in Section 5.32 below.

5.3.2 Permitted Principal Uses and Structures

The following shall be permitted as uses by right:

Single family dwellings;

Manufactured homes which comply with the provisions of Article 8.3;

Public and parochial schools;

Public parks, buildings and grounds;

Child care homes;

Public uses: including but not limited to public parks, playgrounds, recreational uses, fire stations, public utilities and utility distribution systems; and

Places of worship such as churches and synagogues.

5.3.3 Permitted Accessory Uses and Structures

The following accessory uses and structures shall be permitted:

Home occupations in accordance with Article 8.2.

Accessory uses and structures normally appurtenant to permitted uses and structures.

5.3.4 Permitted Special Uses

A building or premises may be used for the following purpose in the R-1 Residential District if a special permit for such use has been obtained in accordance with Article 6 of these regulations.

Medical clinics;

Mortuaries;

Child care center;

Museum and art galleries;

Nursing homes;

Public and private golf courses;

Retirement homes;

Bed and breakfast homes;

Two family dwellings;

Townhouses; and

Multifamily dwellings.

5.3.5 Prohibited Uses and Structures

All other uses and structures which are not specifically permitted or not permissible as special uses shall be prohibited from the R-1 Residential District.

5.3.6 Height and Area Regulations

The maximum height and minimum area regulations shall be as follows:

General Requirements

Type	Lot Area (Sq. Ft.)	Required Front Yard	Required Side Yard	Required Rear Yard	Height
Single Family Dwelling	14,000	25’	7’	30’	35’

(continued)

Type	Lot Area (Sq. Ft.)	Required Front Yard	Required Side Yard	Required Rear Yard	Height
Two Family Dwelling	7,000 per family	25’	7’	30’	35’
Other Permitted Uses	14,000	25’	7’	30’	35’

Buildings on corner lots shall provide front yard setbacks of twenty-five (25) feet on one street side and fifteen (15) feet on the other front yard and designate remaining yards as one rear and one side yard;

Building and structures shall not exceed two and one half (2 1/2) stories in height;

The side yard setback between individual units of two-family dwellings may be reduced to zero, if a one-hour fire rated constructed common wall between units starting at the basement level and continuing through the roof line is maintained.

5.3.7 Parking Regulations

Parking within the R-1 Residential Ordinance District shall be in conformance with the provisions of Article 7 of this ordinance.

5.4 R-2 Residential Single and Multifamily District

5.4.1 Intent

It is the intent of this district to provide for single and multifamily residential uses and development of residential dwellings at higher densities. R-2 Residential Districts should be located in a manner to buffer lower density R-1 Residential Districts from the more intensive commercial and industrial districts and in locations suited for multifamily uses.

5.4.2 Permitted Principal Uses and Structures

The following shall be permitted as uses by right:

Single family dwellings;

Manufactured homes which comply with the provisions of Article 8.3;

Two-family dwellings;

Child care homes;

Community buildings;

Public uses; including but not limited to public parks, playgrounds, recreational uses, fire stations, public elementary and high schools, public utilities and utility distribution systems; and

Places of worship such as churches and synagogues.

5.4.3 Permitted Accessory Uses and Structures

The following accessory uses and structures shall be permitted:

Home occupations in accordance with Article 8.2; and

Accessory uses and structures normally appurtenant to the permitted uses and structures.

5.4.4 Permitted Special Uses

A building or premises may be used for the following purposes in the R-2 Residential District if a special permit for such use has been obtained in accordance with Article 6 of these regulations:

Multifamily dwellings;

Child care center;

Bed and breakfast homes;

Communication and utility buildings and uses;

Medical clinics;

Funeral homes and mortuaries;

Clubs, fraternities, lodges, and meeting places of a non-commercial natures; and

Public and/or private golf courses.

5.4.5 Prohibited Uses and Structures

All other uses and structures which are not specifically permitted or not permissible as special uses shall be prohibited.

5.4.6 Height and Area Regulations

The maximum height and minimum area regulations shall be as follows:

General Requirements

Type	Lot Area (Sq. Ft.)	Lot Width	Required Front Yard	Required Side Yard	Required Rear Yard	Height
Single Family Dwelling	14,000	100’	25’	5’ or 15’ on corner lot	15’	35’
Two Family Dwelling	7,000 per family	50’ per family	25’	5’ or 15’ on corner lot	15’	35’
Multifamily Dwelling	2,200 per family	100’	25’	5’ or 15’ on corner lot	15’	45’
Other Permitted Uses	14,000	100’	25’	5’	15’	35’

Buildings on corner lots shall provide a second frontage on the street side of not less than fifteen (15) feet, provided that the buildable width need not be reduced to less than twenty-eight (28) feet, yards remaining shall be designated side yards each with a minimum depth of five (5) feet;

Buildings on corner lots with a width of over one hundred (100) feet shall provide a second frontage on the street side of not less than fifteen (15) feet, yards remaining shall be designated side yards with a minimum depth of five (5) feet;

Building and structures shall not exceed three (3) stories in height.

5.4.7 Parking Regulations

Parking within the R-2 Residential District shall be in conformance with the provisions of Article 7 of these regulations.

5.5 R-3 Residential Mobile Home/Single and Multifamily District

5.5.1 Intent

It is the intent of this district to provide for single and multifamily residential uses and development of residential dwellings including mobile homes and mobile home parks. Mobile home parks are considered as a residential use and should be located in areas where services and amenities are available, such as those found in conventional residential uses.

5.5.2 Permitted Principal Uses and Structures

The following shall be permitted as uses by right:

Single family dwellings

Mobile Home Parks in accordance with the provisions of Article 8.7;

Manufactured homes which comply with the provisions of Article 8.3;

Two-family dwellings;

Multifamily dwellings;

Child care homes;

Community buildings;

Public uses: including but not limited to public parks, playgrounds, recreational uses, fire stations, public elementary and high schools, public utilities and utility distribution systems; and

Places of worship such as churches and synagogues.

5.5.3 Permitted Accessory Uses and Structures

The following accessory uses and structures shall be permitted:

Home occupations in accordance with Article 8.2; and

Accessory uses and structures normally appurtenant to the permitted uses and structures.

5.5.4 Permitted Special Uses

A building or premises may be used for the following purposes in the R-3 Residential District if a special permit for such use has been obtained in accordance with Article 6 of these regulations:

Child care center;

Bed and breakfast homes;

Communication and utility buildings and uses;

Medical clinics;

Funeral homes and mortuaries;

Clubs, fraternities, lodges, and meeting places of a non-commercial nature;

Public and/or private golf courses; and

Mobile homes on permanent foundations which comply with the provisions of Section 8.3.

5.5.5 Prohibited Uses and Structures

All other uses and structures which are not specifically permitted or not permissible as special uses shall be prohibited from the R-3 Residential District.

5.5.6 Height and Area Regulations

The maximum height and minimum area regulations shall be as follows:

General Requirements

Type	Lot Area (Sq. Ft.)	Lot Width	Required Front Yard	Required Side Yard	Required Rear Yard	Height
Single Family Dwelling	14,000	100’	25’	5’ or 15’ on corner lot	15’	35’
Two Family Dwelling	7,000 per family	50’ per family	25’	5’ or 15’ on corner lot	15’	35’
Multifamily Dwelling	2,200 per family	100’	25’	5’ or 15’ on corner lot	15’	45’
Other Permitted Uses	14,000	100’	25’	5’	15’	35’

Buildings on corner lots shall provide a second frontage on the street side of not less than fifteen (15) feet, provided that the buildable width need not be reduced to less than twenty-eight (28) feet, yards remaining shall be designated side yards each with a minimum depth of five (5) feet;

Building and structures shall not exceed three (3) stories in height.

5.5.7 Parking Regulations

Parking within the R-3 Residential District shall be in conformance with the provisions of Article 7 of these regulations.

5.6 C-1 General Commercial District

5.6.1 Intent

This district is designed to provide for a wide range of retail, office, amusement and service uses normally found in a Central Business District. Highest density and intensity of use are permitted in this district.

5.6.2 Permitted Principal Uses and Structures

The following shall be permitted as uses by right:

Automobile sales and services;

Automotive wash facilities;

Bakery;

Banks, savings and loan associations, credit unions and finance companies;

Barbershops, beauty parlors and shoeshine shops;

Business offices;

Child care homes and centers;

Commercial recreation facilities (bowling alleys, miniature golf courses and similar uses);

Convenience store or filling station;

Detached banking facilities (ATM);

Dry cleaning or laundry establishments;

Food service, retaurants and taverns;

Food storage lockers;

Funeral homes and mortuaries;

Garden centers;

Motels and hotels;

Museums and art galleries;

Office buildings;

Parking lots and other off-street parking facilities;

Personal and professional services;

Photography studios;

Private schools, including but not limited to business or commercial schools, and dance or music academies;

Public and private charitable institutions;

Public parks, buildings and grounds;

Public uses of an administrative, public service or cultural type including city, county, state or federal administrative centers and courts, libraries, police and fire stations and other public buildings, structures, and facilities;

Retail store or business;

Public utility facilities;

Sales and showrooms, including service facilities and rental of equipment, provided all displays and merchandise are within the enclosure walls of the buildings;

Service stations; and

Stores or shops for the sale of goods at retail and/or wholesale.

5.6.3 Permitted Accessory Uses and Structures

The following accessory uses and structures shall be permitted:

Accessory uses and structures normally appurtenant to permitted uses and structures and to uses and structures permitted as special uses.

5.6.4 Permitted Special Uses

A building or premises may be used for the following purposes in the C-1 Commercial Business District if a special permit for such use has been obtained in accordance with Article 6 of these regulations.

Multifamily dwellings;

Bed and breakfast guest home;

Recycling center; and

Apartments on floors other than ground floors.

Conversion of an existing building only into a single family dwelling with a minimum of twenty five percent (25%)square footage above grade dedicatd to a permitted use allowed pursuant ot Cortland Zoning Regulation 5.6.2. Store-front signage for the permitted use shall be prominently displayed. In the event of damage or destruction to the building caused by a natural disaster or fire, the permitholder shall be allowed to reconstruct the building consistent with the terms of the special use permit. Special use permits granted pursuant to this section 5.6.4 (5) shall not be transferrable to future property owners unless the Village

Board specifically allows for such transferability upon the recommendation of the Planning Comission.

5.6.5 Prohibited Uses and Structures

All other uses and structures which are not specifically permitted or not permissible as special uses shall be prohibited from the C-1 Commercial Business District.

5.6.6 Screening Requirements

Where a site adjoins or is located across an alley from the Residential District, a solid wall or fence or compact evergreeen hedge six (6) feet in height may be required on the property line common to such districts, except in a required front yard.

Open storage of materials attendant to a permitted use or special permit use shall be permitted only within an area surrounded or screened by a solid wall or fence.

5.6.7 Prohibited Uses

No use shall be permitted and no process, equipment or materials shall be used which are found by the Village to be objectionable to persons living or working in the vicinity by reasons of odor, fumes, dust, smoke, cinders, dirt, refuse, noise, vibrations, illumination, glare, or unsightliness or to involve any hazard of fire or explosion.

5.6.8 Height and Area Regulations

The maximum height and minimum area regulations shall be as follows:

General Requirements

Type	Lot Area (Sq. Ft.)	Lot Width	Required Front Yard	Required Side Yard	Required Rear Yard	Height
Permitted Uses	3,750	25’	0’	0’ or 10’ when abutting a residen-tial district	15’	45’
Multifamily Dwelling	2,200 per family	50’	25’	5’ or 7.5’ on corner lots	15’	45’

5.6.9 Parking Regulations

Off-street parking and loading requirements contained in Article 7 do not apply to the C-1 General Commercial District.

5.7 C-2 Highway Commercial District

5.7.1 Intent

The C-2 Highway Commercial District is intended for the purpose of servicing highway travelers and providing limited commercial services. Off-street parking is required to reduce possible adverse effects on adjacent properties.

5.7.2 Permitted Principal Uses and Structures

The following shall be permitted as uses by right:

Automobile sales;

Automobile wash facilities;

Business offices, sales, and services;

Churches and other religious institutions;

Commercial condo;

Construction sales and services;

Commercial operations and businesses;

Commercial recreational facilities (bowling alleys, miniature golf courses and similar uses);

Convenience store or filling station;

Detached banking facilities (ATM)

Farm implement sales and services;

Food service, restaurants, taverns and cafes;

Garden centers and nurseries;

Irrigation equipment sales and services;

Medical clinics;

Mobile home sales;

Motels, including accessory service uses, such as swimming pools, liquor stores and restaurants;

Service stations;

Stores or shops for sale of goods at retail.

5.7.3 Permitted Accessory Uses and Accessory Structures

The following accessory uses and accessory structures shall be permitted:

Accessory uses and accessory structures normally appurtenant to the permitted uses and special uses shall adhere to Article 8.1 of these regulations. Accessory structures must adhere to 5.7.7 Setback Requirements.

Accessory buildings are not permitted in the C-2 Highway Commercial District.

5.7.4 Permitted Special Uses

A building or premises may be used for the following purposes in the C-2 Highway Commercial District if a special use permit for such use has been obtained in accordance with Article 6 of these regulations.

Private clubs and lodges;

Facilities for the commercial storage or sale of fertilizer, seed, or toxic or flammable agriculture chemicals.

Radio studios, transmitters, and antenna;

Recycling centers;

Residential units located on the upper levels of commercial buildings that are no less than 2-bedroom units and no less than 1,100 square feet in total area;

Commercial storage and wholesale/retail sale of fireworks; and

Light manufacturing operations, provided that such use is not noxious by reason of vibration or noise beyond the confines of the building, or by the emission of particulates, fumes, gas, odor, or smoke.

5.7.5 Screen Requirements

Where a site adjoins or is located across an alley from the Residential District, a solid wall or solid fence or compact evergreen hedge six (6) feet in height shall be required on the property line common to such districts, except in a required front yard.

Where a site adjoins or is located across an alley from the Agricultural District, a solid wall or solid fence six (6) feet in height shall be required on the property line common to such districts, except in a required front yard.

Open storage of materials attendant to a permitted use or special permit use shall be permitted only within an area surrounded or screened by a solid wall or solid fence.

Screen requirement must be met with the construction of the building.

5.7.6 Prohibited Uses

All other uses and structures which are not specifically permitted or permissible as special uses shall be prohibited from the C-2 Highway Commercial District.

5.7.7 Height and Areas Regulations

The maximum height and minimum area regulations shall be as follows:

General Requirements

Category	Amount
Minimum lot area	7,000 square feet
Minimum lot width	50’
Required front yard setback (minimum)	25’
Side yard setback (minimum)	7’
Street side yard setback (minimum)	25’
Rear yard setback (minimum)	20’
Maximum building height	45’
Minimum street-facing facades utilizing improved surface	35%
Minimum buffer yard next to residential use	20’
Minimum buffer yard next to agricultural use	20’
Minimum depth of landscaping next to street right of way	10’

Existing lots of record adjacent to Highway 77 may have a minimum front yard setback of 10’. Existing lots of record adjacent to Highway 77 may have a minimum rear yard setback of 15’. An alley can be used as a buffer yard but cannot be used to satisfy setback requirements.

5.7.8 Community Commercial Operations

Community Commercial operations shall not include uses that are noxious by reason of vibration or noise beyond the confines of the building, or by the emission of particulate, fumes, gas odor, or smoke.

5.7.9 Use Limitations

All operation, activities, and storage shall be conducted entirely inside of a building, or buildings unless; the nearest point of such operation or activity is more than 200 feet from the boundary of any other zoning district other than the C-2 Highway Commercial District or outdoor storage which meets outdoor storage requirements. (Outdoor dining is allowed – other special events or projects require an approved special use permit).

5.7.10 Outdoor Storage

Storage may be maintained outside the building and side yards or rear yards if such storage area is separated from public streets and other property by screening of not less than 6 feet and no more than 20 feet in height. Stored materials must be a minimum of 2 feet less than the height of the screening.

5.7.11 Additional Screening

If a lot in the Commercial district adjoins a residential district, screening shall be provided at the lot lines sufficient to protect, on a year-round basis, the privacy of adjoining residential uses.

5.7.12 Parking Regulations

Parking within the C-2 Highway Commercial District shall be in conformance with the provisions of Article 7 of these regulations.

5.7.13 Corner Lots

Plantings, structures signs, fences, and walls within the C-2 Highway Commercial District on corner lots shall be in conformance with Article 8.8.7 of these regulations.

5.7.14 Site Lighting

Site lighting in the C-2 Highway Commercial District shall be conformance with the provisions of Article 8.9 of these regulations.

5.7.15 Storage and Shipping Container Placement and Use Requirements

It shall be unlawful to place, use, allow, or maintain shipping containers, trailers, or any vehicles within the C-2 Highway Commercial District for storage purposes.

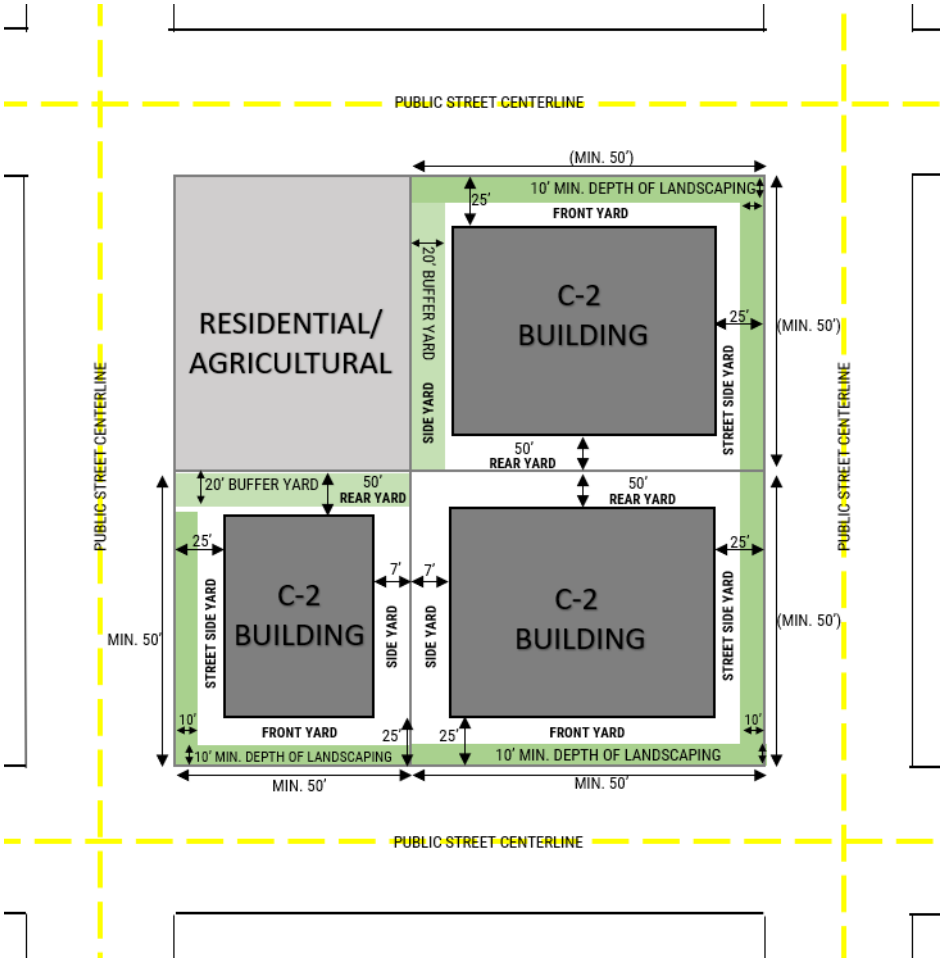
These restrictions shall not apply to, and no permit shall be required for, the placement of portable storage containers in any zoning district for temporary use for not more than fifteen (15) days out of every 365 days. Persons placing portable storage containers upon their premises shall register such placement with the Village Clerk, noting the date upon which the portable storage containers were first placed upon the premises.

Licensed contractors may use shipping containers for the temporary location of an office, equipment and/or materials storage during construction which is taking place on the property where the shipping container is located, if the use is authorized pursuant to zoning permit approval authorizing a remodel or construction project on the same site as the temporarily located shipping container.

5.7.16 Requirement to Subdivide

All developments within the Highway Commercial District are required to the Village of Cortland Subdivision Regulations, regardless of lot size.

5.7.17 C-2 District Diagram



5.8 I Industrial District

5.8.1 Intent

This district is designed to provide for a wide range of industrial and related uses.

5.8.2 Permitted Principal Uses and Structures

The following shall be permitted as uses by right:

1. Agriculture, excluding the expansion of existing or the development of commercial livestock facilities/operations;
2. Animal care;
3. Automobile sales and services;
4. Automotive wash facilities;
5. Bottling works;
6. Building material sales, except for ready-mix concrete plants and similar uses which emit particulate, odor or smoke;
7. Carpenter, cabinet, plumbing or sheet metal shops;
8. Construction sales and services;
9. Dry cleaning and/or laundry plants;
10. Electric and telephone substations;
11. Farm implementation sales and services;
12. Farm produce sales;
13. Food service; restaurants, cafes and taverns;
14. Freight and truck terminals;
15. Garden centers and nurseries;
16. Groceries, retail and wholesale;
17. Industrial Condos whose individual units meet the requirements of permitted principal uses and structures in Section 5.8.2.
18. Machinery sales;
19. Mini-Storage facilities;
20. Mobile and modular home sales and manufacturing;
21. Newspaper publishing plants;
22. Public and quasi-public uses of an educational, recreational, or religious type, including public and parochial elementary schools and junior high schools, high schools; private non-profit schools, churches, parsonages, and other religious institutions; parks and playgrounds;
23. Public utility and public service uses;
24. Wholesale sales and services.

5.8.3 Permitted Accessory Uses

The following accessory uses and accessory structures shall be permitted:

1. Accessory uses and accessory structures normally appurtenant to the permitted uses and special uses shall adhere to Article 8.1 of these regulations. Accessory structures must adhere to 5.8.6 setback requirements.
2. Accessory buildings are not permitted in the I Industrial District.

5.8.4 Permitted Special Uses

A building or premises may be used for the following purposes in the I Industrial District if a special permit for such has been obtained in accordance with Article 6 of these regulations.

1. Junk and salvage yard in accordance with Article 6.3;
2. Recycling center in accordance with Article 6.3;
3. Ethanol and/or alcohol plants in accordance with Article 3.3 definitions;
4. Light, medium, or heavy manufacturing/industrial operations, providing that such use is not noxious by reason of vibration or noise beyond the confines of the building, or by the emission of particulates, fumes, gas odor, or smoke;
5. Live Adult Entertainment Establishments, Adult-Oriented Entertainment, or Adult Retail;
6. Warehouse, storage houses, transportation warehousing, storage lots;
7. Telecommunications towers, when in conformance with the following:

a. Towers shall be located at the most restrictive distance of: i. The setback requirements in Article 5.8.6; ii. a minimum distance of twice the height of the tower from adjacent dwellings or structures other than those associated with the tower facility.
b. Towers shall be a minimum distance from any street, county road, or federal highway of equal to or greater than the height of the tower measured from the rightof-way line.
c. Towers shall have direct frontage on, or direct access to, an improved street, country or township road (not including dirt or minimum maintenance roads).
d. Towers must also comply with the most recent International Building Code, ANSI/TIA provisions, and Federal Aviation Administration requirements.

8. Data Centers, provided that – at a minimum – the plan for such a data center covers noise, vibration or other emissions, resource consumption including (but not limited to) energy and water, (etc.) to a rigorous and precise level of detail. Additional standards may be levied, and concerns may be raised, by the Planning Commission or Village Board during the process of acquiring a Special Use Permit under these regulations.

5.8.5 Prohibited Uses and Structures

All other uses and structures that are not specifically permitted or not permissible as special uses shall be prohibited from the Industrial District.

5.8.6 Screening

1. Where a site adjoins or is located across an alley from the Residential District, a solid wall or solid fence or compact evergreen hedge six (6) feet in height shall be required on the property line common to such districts, except in a required front yard.
2. Where a site adjoins or is located across an alley from the Agricultural District, a solid wall or solid fence six (6) feet in height shall be required on the property line common to such districts, except in a required front yard.
3. Open storage of materials attendant to a permitted use or special permit use shall be permitted only within an area surrounded or screened by a solid wall or solid fence.
4. Screen requirement must be met with the construction of the building.

5.8.7 Height and Area Regulations

The maximum height and minimum are regulations shall be as follows:

Category	Amount
Minimum lot area	10,000 square feet
Minimum lot width	100 feet
Required front yard	35 feet
Minimum buffer yard	20 feet when abutting a residential or agricultural use
Street side yard setback (minimum)	35 feet
Required rear yard	45 feet
Height	35 feet
Side yard setback (minimum)	7 feet

5.8.8 Parking Regulations

Parking within the I Industrial District shall be in conformance with the provisions of Article 7 of these regulations.

5.8.9 Corner Lots

1. Plantings, structures signs, fences, and walls within the I Industrial District on corner lots shall be in conformance with Article 8.8.7 of these regulations.

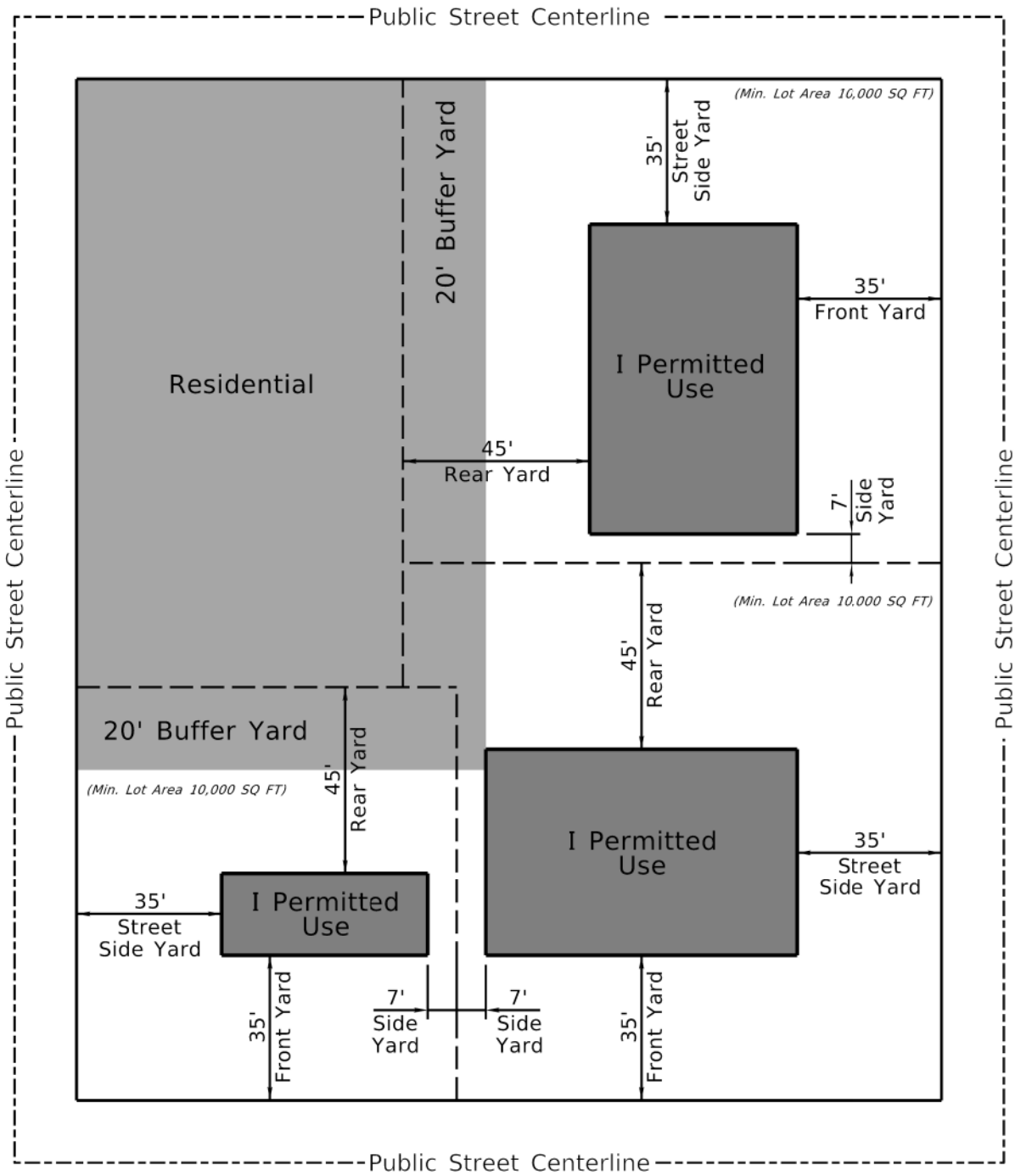
5.8.10 Site Lighting

1. Site lighting in the I Industrial District shall be conformance with the provisions of Article 8.9 of these regulations.

5.8.11 Storage and Shipping Container Placement and Use Requirements

1. It shall be unlawful to place, use, allow, or maintain shipping containers, trailers, or any vehicles within the I Industrial District for storage purposes.
2. These restrictions shall not apply to, and no permit shall be required for, the placement of portable storage containers in any zoning district for temporary use for not more than fifteen (15) days out of every 365 days. Persons placing portable storage containers upon their premises shall register such placement with the Village Clerk, noting the date upon which the portable storage containers were first placed upon the premises.
3. Licensed contractors may use shipping containers for the temporary location of an office, equipment and/or materials storage during construction which is taking place on the property where the shipping container is located, if the use is authorized pursuant to zoning permit approval authorizing a remodel or construction project on the same site as the temporarily located shipping container.

5.8.12 District Diagram



6 Special Use Permit

6.1 General

The Village Board may authorize by special permit after public hearing, any of the following buildings or uses designated in this Ordinance as permitted special uses.

6.2 Procedures

Such application shall be in writing and submitted with the applicable fee, filed in the office of the Village Clerk, state the proposed location and use of the property, and such other relevant matters as may be requested by the governing body. Upon receipt of such application, the Zoning Administrator shall forward the application to the Planning Commission for its recommendation. Upon hearing, the Planning Commission shall forward its recommendation to the Village Board, within thirty (30) days. Upon hearing, the Village Board may approve or deny the application in whole or in part, or prescribe conditions for such use of the property. No special use permit shall become effective until after separate public hearings are held by both the Planning Commission and the Village Board in relation thereto, at which parties in interest and citizens shall have an opportunity to be heard. Notice of the purpose, time, and place of such hearing shall be given by publication thereof in a paper of general circulation in the Village, one time at least ten (10) days prior to such hearing (Ref. 19-904 R.S. Neb.).

In addition to the publication of notice herein prescribed, a notice, in sign form, of the hearing shall be posted in a conspicuous place on or near the property of which such action is pending. The sign shall be placed at least ten (10) days prior to the date of each hearing.

Except as otherwise provided herein, no special use permit shall be granted by the Village Board, without an affirmative vote of a majority of all members of the Village Board and unless the proposed use is found to:

Be compatible with and similar to the use permitted in the district, and

Not be a matter which should require re-zoning of the property, and

Not be detrimental to adjacent property, and

Not tend to depreciate the value of the surrounding structures or property, and

Be compatible with the stated intended use of the district, and

Not change the character of the district, and

Be in accordance with the Comprehensive Plan.

In case of protest against such special use permit, signed by the owners of twenty percent (20%) or more either of the area of the lots included in such proposed change, or of those immediately adjacent on the side and in the rear thereof extending one hundred (100) feet, therefrom, and of those directly opposite thereto extending one hundred (100) feet from the street frontage of such opposite lots, such special use permit shall not become effective except by the favorable vote of two-thirds of all members of the Village Board.

6.3 Salvage, Junk Yard, and Recycling Center

Salvage or junk yard operations or recycling centers and related facilities shall only be allowed by special permit in the AG-1 and AG-2 Zoning Districts under the following conditions:

Located on a tract of land at least one-fourth (1/4) mile from a residential or agricultural farm residence.

The operation shall be conducted wholly within a noncombustible building or within an area completely surrounded on all sides by a visual obscuring fence or wall. The fence or wall shall be of uniform height (at least eight (8) feet high) and uniform texture and color shall be so maintained by the proprietor as to insure maximum safety to the public and preserve the general welfare of the neighborhood. The fence or wall shall be installed in such a manner as to retain all scrap, junk or other material within the yard and no scrap, junk or other material shall protrude above the fence.

No junk shall be loaded, unloaded or otherwise placed, either temporarily or permanently, outside the enclosed building, fence, or wall, or within the public right-of-way.

Any other requirement deemed appropriate and necessary by the Village Board for the protection of the general health and welfare.

In making any decision granting a special use permit, the Village Board shall impose such restrictions, terms, time limitations, landscaping, improvement of off-street parking lots, and other appropriate safeguards as required to protect adjoining property.

6.4 Landfills and Sanitary Landfills

Private landfill operations shall only be allowed by special permit in the AGR Agriculture District upon prior approval of the Nebraska Department of Health and Human Services System and with conformance to the following conditions:

Located on a tract of land at least three hundred (300) feet from a residential or agricultural farm residence.

The operation shall be conducted wholly within an area completely surrounded on all sides by a fence or wall. The fence or wall shall be of uniform height (at least eight (8) feet high) and uniform texture and color shall be so maintained by the proprietor as to insure maximum safety to the public and preserve the general welfare of the neighborhood. The fence or wallshall be installed in such a manner as to retain all material within the yard and no material shall protrude above the fence.

No material shall be loaded, unloaded or otherwise placed, either temporarily or permanently, outside the enclosed building, fence or wall, or within the public right-of-way.

Any other requirement deemed appropriate and necessary by the Village Board for the protection of the general health and welfare.

Special use permits granted under this section shall be subject to annual review and renewal by the Village Board.

In making any decision granting a special use permit, the Village Board shall impose such restrictions, terms, time limitations, landscaping, improvement of off-street parking lots, and other appropriate safeguards as required to protect adjoining property.

7 Parking Regulations

7.1 General Provisions

All buildings and structures erected and all uses of land in all districts established after the effective date of this Ordinance shall provide accessory parking and loading facilities as required under this section.

All off-street parking spaces required by this Ordinance shall be located on the same lots as the use it serves.

Owners of two or more uses or parcels of land may agree to jointly utilize the same parking spaces provided that satisfactory legal evidence is presented in the form of deeds, leases, or contract documents to establish such a joint area of use.

All yard area including driveways, except the required front yard for residential uses may be used for off-street parking. Garages and driveways may be considered as off-street parking spaces.

A plan, drawn to scale, indicating how the off-street parking and loading requirements are to be met, shall accompany an application for a building certificate. The plan shall show all elements necessary to indicate that the requirements are being fulfilled.

A parking space shall be an area ten (10) feet by eighteen (18) feet except for loading and unloading areas which shall be an area ten (10) feet by thirty-six (36) feet.

If the Off-Street Parking and Off-Street Loading Requirements listed in Section 7.2 and Section 7.3 are not used, approval of the number of off-street parking spaces and locations shall be made by motion, second, and favorable vote by three-fourths of the attending Village Board members as recommended by the Planning and Zoning Commission.

ADA-accessible parking space: Parking facilities for single-family, duplex, and mobile homes are exempt from the requirement. Spaces designated for the handicapped shall have minimum width of twelve feet (12) and provide a barrier free route to an accessible building entrance. Such space shall be designated with an upright sign exhibiting the universal symbol for accessibility by the handicapped.

All such spaces shall be designed in compliance with the standards of the Americans with Disabilities Act.

7.2 Off-Street Parking Requirements

At the time of construction, or enlargement of more than 50 percent of an existing structure or building or change in the use of land, off-street parking spaces and loading areas shall be provided, constructed, and maintained for all uses as follows:

Use	Minimum Number of Parking Spaces
Single family, two family dwelling	2 per dwelling unit
Apartments	
Efficiency and one-bedroom	1 per dwelling unit
Two-bedrooms	1.5 per dwelling unit
Three or more bedrooms	2 per dwelling unit
Mobile Trailer Park	2 per trailer unit
Hotel and Motel	1 per rental unit plus 1 for every 4 employees
Hospitals, nursing homes, rest homes, or similar uses	1 for every 2.5 patient beds and 1 for each staff and employee on the largest shift
Places of public assembly such as auditoriums, theaters, stadiums, community halls, churches, etc.	1 for every 4 seats
Bowling Alley	2 for each alley
Retail sales department stores, restaurants, taverns, grocery stores, etc.	1 per 200 square feet of floor area as determined by exterior wall dimensions
Professional office establishments	1 per 500 square feet of floor area as determined by exterior wall dimensions
Manufacturing, wholesale warehouse and similar uses	1 for every 2 employees on the largest working shift

7.3 Off-Street Loading Requirements

At the time of construction, alteration or enlargement of any structure or building except residences and farms having an aggregate gross floor area of 500 square feet or more, off-street loading areas (areas designated adjacent to buildings where trucks may loan and unload cargo) shall be provided and maintained for all uses as follows:

Number	Loading Area	Gross Floor Area
One	500 square feet	for every 5,000 to 20,000 square feet
One	500 square feet	for every 20,000 square feet or fraction thereof

8 Accessory Uses and Supplemental Regulations

8.1 Accessory Building

Buildings and structures may be erected and land may be used for purposes which are clearly incidental to, and customarily and commonly associated with the main permitted use of the premises. Such accessory buildings and uses shall be so constructed, maintained, and conducted as to not produce noise, vibration, dust, dirt, fly ash, odor, noxious gases, heat or glare which is injurious, damaging, unhealthful or disturbing to adjacent property, or the users thereof, and shall be on the premises of the main use.

Any accessory building shall have a minimum setback of five (5) feet and all garage entrances must have a minimum of ten (10) feet long drive when garage opening is perpendicular to the access street or alley. Attached garages are considered part of the principal building. Accessory buildings shall not exceed twenty (20) feet in height, or the height of the principal permitted buildings, whichever is greater. There shall be a maximum of two (2) accessory buildings. The minimum distance between accessory buildings shall be five (5) feet. The maximum floor area of all accessory buildings shall not exceed one thousand two hundred (1,200) square feet; provided, that no lot shall have a maximum building coverage which exceeds forty (40) percent of the lot size. For the purpose of computing the percentage of building coverage on a parcel, the maximum building coverage shall apply to area covered by all buildings or structures on the parcel, but shall not apply to the areas covered by driveways or sidewalks. (Ref. 17-505 RS Neb.)

8.2 Home Occupations

An occupation or activity carried on within the dwelling or accessory building by a member of the family residing on the premises, which occupation or activity is incidental and secondary to the residential occupancy and does not change the residential character nor infringe upon the right of neighboring residents to enjoy a peaceful occupancy of their homes.

The following conditions and restrictions shall apply to such customary home occupations:

The primary use of the building or structure in which the occupation is situated shall clearly be the dwelling used by the person as his private residence.

Signs and displays shall be limited to one (1) non-illuminated sign not exceeding six (6) square feet in area.

No equipment or machinery shall be used in such activities that is perceptible off the premises by reason of noise, smoke, odor, dust, radiation, electrical interference or vibration. Parking shall be handled in such a manner as to not impede or hinder traffic on any public right of way.

8.3 Manufactured Homes and Mobile Homes

All manufactured homes and mobile homes shall meet the following standards:

The home shall have no less than nine hundred (900) square feet of floor area.

The home shall have no less than an eighteen (18) foot exterior width.

The roof shall be pitched with a minimum vertical rise of two and one-half (2 1/2) inches for each twelve (12) inches of horizontal run.

The exterior siding material shall be non-reflective and shall be of a color, material and scale comparable with those existing in residential site-built, single family construction.

The home shall have a nonreflective roof material which is or simulates asphalt or wood shingles, tile or rock.

The home shall have wheels, axles, transporting lights and removable towing apparatus removed.

Nothing in this Article shall be deemed to supersede any valid restrictive covenants of record

The home must meet building code requirements adopted by the Village.

Permanent connections to permanently located utilities shall comply with National Plumbing Code and the National Electrical Code adopted by the Cortland Municipal Code.

A label certifying that the mobile home was built in compliance with the National Manufactured Home Construction and Safety Standards, 24 CFR 3280 et. Seq. Promulgated by the U.S. Department of Housing and Urban Development or a

seal of the State of Nebraska, Department of Health for modular home as defined in Section 71-1557 of the Nebraska Revised Statues.

Each manufactured home and mobile home shall be securely and permanently attached to permanent foundation complying with the National Building Code adopted by the Cortland Municipal Code.

The exterior siding of each manufactured home and mobile home shall extend to the ground and shall be supported to withstand wind loads as set forth in the National Building Code adopted by the Cortland Municipal Code, or the foundations shall form a complete enclosure under the exterior walls. The space beneath the manufactured home and mobile home shall be properly ventilated.

Each manufactured home and mobile home shall be considered to be a single family detached structure for the purposes determining applicable site development regulations.

All permanent dwellings, including mobile homes, constructed or located within the Village limits after May 1, 1992, shall have adequate permanent foundations subject to approval of the governing authority pursuant to the building permit procedure.

8.4 Yard Regulations

8.4.1 Front Yards

The front yards heretofore established shall be adjusted in the following cases:

Where forty percent (40%) or more of the frontage on one side of a street between two intersecting streets is developed and the buildings on this side of a block have observed a front yard greater in depth than herein required, new buildings shall not be erected closer to the street than the average front yard so established by the existing buildings provided that no building shall be required to have a front yard setback of more than fifty (50) feet.

Where forty percent (40%) or more of the frontage on one side of a street between two intersecting streets is developed with buildings that have a front yard less than the required, new buildings shall not be erected closer to the street than the nearest building on the block.

8.4.2 Structural Projections

The ordinary projections of chimneys and flues, buttresses, eaves, overhangs, open-unenclosed steps or stoops up to 5’ in height may extend into required yards for a distance of not more than two (2) feet in the required side yard and not more than five (5) feet in the required front yard.

8.5 Exceptions to Height Regulations

The height limitations contained in the Schedule of District Regulations do not apply to spires, belfries, cupolas, antennas, water tanks, ventilators, chimneys, or other appurtenances usually required to be placed above the roof level and not intended for human occupancy and agricultural structures.

8.6 Exception to Lot Size Requirements

If, at the time of passage of this article, a lot or the aggregate of contiguous lots or land parcels held in a single ownership has an area or dimension which does not meet the lost size requirements of the district in which the property is located, the lot or aggregate holdings may be occupied by any use permitted outright in the district subject to the other requirements of the district.

8.7 Mobile Home Parks

Mobile Home Parks shall only be allowed in the R-3 Zoning District under the following conditions:

Individual mobile home lots shall have an area of not less than four thousand (4,000) square feet per single wide mobile home and six thousand (6,000) square feet for double wide mobile homes, and the total number of lots per gross acre shall not exceed six (6).

Mobile homes shall be situated on individual lots so there will be a minimum of fifteen (15) feet between mobile homes and that each mobile home will be set back at least fifteen (15) feet from the nearest service road. Mobile homes parked end-to-end shall have an end-to-end clearance of not less than ten (10) feet. Enclosed additions shall be considered a part of the mobile home in measuring required yard distance. The required area for each mobile home space shall not include area

required for access or service roads, service buildings, recreation areas, office, and other similar mobile home park needs.

The mobile home park shall have direct access to a public street or highway by a right-of-way at least fifty (50) feet in width and a minimum length of one hundred (100) feet to permit the easy entrance and exit from the mobile home park. Service roads shall be provided to each mobile home space. Each service road shall provide for continuous forward movement, shall connect with a street or highway, and shall a minimum clear width of twenty (20) feet paved with a suitable dustless material.

Walks and Lighting. Walkways not less than four (4) feet wide shall be provided from mobile home spaces to the service buildings. All walkways within the park shall be hard surfaced and lighted at night with a minimum illumination of twenty-five (25) watt lamps spaced at intervals of not more than one hundred (100) feet.

Off-Street Parking. Two off-street parking spaces for each mobile home space shall be provided at each mobile home space or in group parking. Each off-street parking space shall be at least three hundred (300) square feet.

The area of the mobile home stand shall be improved to provide an adequate and approved foundation for the placement and tie-down of the mobile home, thereby securing the superstructure against uplift, sliding, rotation, or overturning.

The mobile home or trailer stand shall be on incombustible materials and shall not shift or settle unevenly under the weight of the mobile home or trailer due to frost action, inadequate drainage, vibration or other forces acting upon the superstructure. The mobile home or trailer stand may be provided by means of a solid concrete footer block (16” x 16” x 4” Minimum) placed on solid uniform soil with at least two (2) standard concrete blocks with cells placed vertically beside each other on the footer block. A solid 4” concrete cap covering the two (2) concrete blocks shall be provided as the bearing area to be positioned directly beneath the steel frame of the mobile home or trailer. Such clocking shall be provided along the full length of the mobile home or trailer unit, spaced not more than ten (10) feet apart, and not more than five (5) feet from the ends of the unit.

The mobile home or trailer stand shall be provided with anchors and the tie downs such as cast-in-lace concrete “dead men”, eyelets imbedded in concrete foundations or runways, screw augers, arrowhead anchors or other devices securing the stability of the mobile home or trailer. The tie-down devices shall be compatible with the foundation system provided for the mobile home or trailer such that the tie-downs are designated to resist the action of frost in the same manner as the foundation system.

The skirting of all mobile homes and trailers is required. Such skirting shall not attach a mobile home or trailer permanently to the ground, but shall be sufficient to withstand wind load requirements and shall not provide a harborage for junk or rodents, nor create a fire hazard. Such skirting shall be provided with removable access panels sufficient to provide easy access to all utility connection points of the mobile home or trailer and its subsequent connection to the utility raisers if they are located within the skirted area.

Permit the Creation of Mobile Home Parks in Which the Individual Mobile Home Lots Are Available For Sale. Wherever a mobile home park is permitted by this Ordinance to be created through the granting of conditional uses, or otherwise, said mobile home park may be designed to permit the sale of the individual mobile home lots within said park. A proposed mobile home park in which the individual mobile home lots will be offered for sale must meet all of the following requirements:

The individual mobile home lots shall, for the distinct within which such mobile home park is located, meet the minimum lot requirements, minimum yard requirements, maximum lot coverage, and maximum height requirements of such districts.

Each such mobile home lot shall be individually serviced with all utilities and shall be individually metered for all utilities and treated in all respects by the Village as a separate user of utilities.

The developer of such mobile home park shall be required to secure a preliminary and final plat as per the subdivision process outlined in the Village of Cortland Subdivision Regulations.

At the time of an application for a special use permit, or at the time of the application for subdivision in a mobile home park where the lots are to be offered for sale, the developer shall submit all legal documents necessary for the creation of an association having the purpose of maintaining, controlling, and covering all expenses, taxes and costs incurred on common areas within the mobile home park. Such association shall require that all property owners within the mobile home park be members thereof and pledge the lots owned within the mobile home park as security for the association performing such obligations. Covenants shall be placed on the property by the developer and owners thereof so as to ensure this obligation. These documents shall be submitted by the proper officials to the Village Board for its approval and no subdivision permit or special use permit may be issued without the approval of these documents by the Village Board.

8.8 Sign Regulations

8.8.1 Regulations Application: Advertising Signs

Advertising signs shall not be erected, constructed, or altered except in compliance with the requirements and the regulations of the Zoning District in which they are to be located.

8.8.2 Regulations Application: Signs and Specifications

Structural supports for advertising signs shall not be exposed to public view, but shall be an integral part of the design of the advertising sign. Signs shall be structurally safe and in good repair, as determined by the Municipal Engineer, including those connected to a building facade. Signs shall not flash all elements simultaneously and shall not resemble any traffic sign, signal or device. Revolving beacons are prohibited. Signs shall not be located in such manner as to obscure or otherwise interfere with the effectiveness of any existing business advertising, or an official traffic sign, signal or device or which do not obstruct or interfere with the driver's view of approaching, merging or intersecting traffic, as determined by the Municipal Engineer.

8.8.3 Regulations Application: Signs in Residential Districts

The following types of non-illuminated, non-advertising, and non-flashing signs are permitted in all R-Districts:

Nameplates and Identification Signs. Signs indicating the name or address of the occupant or a permitted home occupation; provided, that they shall not be larger than three (3) square feet in area. Only one (1) such sign per dwelling unit shall be permitted except in the case of comer lots where two (2) such signs, one (1) facing each street, shall be permitted for each dwelling unit. For multiple-family dwellings, a single identification sign not exceeding six (6) square feet in area shall be permitted.

Sales or Rental Signs. Signs advertising the sale or rental of the premises upon which they are located may be permitted or provided:

The size of any such sign is not in excess of six (6) feet.

Not more than one (1) sign is placed upon any property unless such property fronts upon more than one (1) street, in which event two (2) signs may be erected, one (1) on each frontage.

Such sign shall be promptly removed when premise is sold or rented.

Institutional Signs. Signs of schools and places of worship may be erected and maintained; provided, that:

The size of any such sign is not in excess of twenty-four (24) square feet; and

Not more than one (1) such sign is placed on a property, unless such property fronts upon more than one (1) street, in which event two (2) such signs may be erected, one (1) on each frontage.

Signs designating entrances or exits to or from a parking area shall not exceed two (2) square feet each. One (1) sign per parking area designating the conditions of use or identity of such parking area shall be limited to nine (9) square feet; Provided, that on a comer lot two (2) such signs shall be permitted, one (1) facing each street.

Signs advertising the sale or development of the premises upon which they are erected, when erected in connection with the development of the premises by a builder, contractor, developer, or other persons interested in such sale or development, may be erected and maintained; Provided:

The size of any sign is not in excess of twenty-four (24) square feet; and

Not more than one (1) sign is placed upon any property, unless such property fronts upon more than one (1) street, in which event one (1) such sign may be erected on each frontage.

Any such sign shall be removed by the developer within thirty (30) days of the final sale of property.

Directional Signs. Signs indicating the location and direction of premises available for or in process of development, but not erected upon such premises, and having inscribed thereon, the name of the owner, developer, builder, or agent, may be erected and maintained Provided, that:

The size of any such sign is not in excess of six (6) square feet, and not in excess of four feet (4') in length.

Not more than one (1) such sign is erected on each five hundred feet (500') of street frontage.

Artisans' Signs. Signs of mechanics, painters, and other artisans, may be temporarily erected and maintained during the period such persons are performing work on the premises; Provided, that:

The size thereof is not in excess of twelve (12) square feet.

Such signs are removed promptly upon completion of the work.

Private Driveways. Signs indicating the private nature of a driveway and trespassing signs; Provided, that the size of any such sign shall not exceed two (2) square feet.

Projection of Signs. No sign in any R-District shall project beyond the property line.

8.8.4 Regulations Application: Signs in Commercial and Industrial Districts

Signs are permitted in commercial and manufacturing zones in accordance with the following regulations:

Size of Sign. No single sign in any C- or I-District shall have a surface area greater than one hundred (100) square feet.

Projection of Signs. No sign in any C- or I-District shall project into a public right-of-way.

Height of Signs. The top of any sign shall not project above the building roof line.

Flashing and Movable Signs. Flashing signs and signs with movable parts are not permitted.

8.8.5 Regulations Application: Off-Site Signs

Signs which advertise business or uses in locations other than upon which the sign is located shall not be permitted.

8.8.6 Regulations Application: Existing Signs

Signs lawfully existing at the time of the adoption or amendment of this Ordinance may be continued, although the use, size, or location does not conform with the provisions of this Ordinance. However, it shall be deemed a nonconforming use or structure, and the provisions of Article 2 of this Chapter shall apply.

8.8.7 Regulations Application: Corner Visibility

On a corner lot in any district except C-1, having a residential use, no planting, structure, sign, fence, wall or obstruction to vision between the range of two and one-half (2 1/2') and ten (1O') feet in height measured from the center line of the street shall be placed or maintained within the triangular area formed by the intersecting curb lines if extended straight and a straight line connecting points on the curb lines each of which is sixty feet (60') feet in distance from the point of intersection. Curb line shall be measured from the back of each curb.

On a comer lot in any C-1 district where the use is residential, no planting, structure, sign, fence, wall, or obstruction to vision between the range of two and one half (2 1/2 ') and ten (10') feet in height measured from the center line of the street shall be placed or maintained within the triangular area formed by the intersecting curb lines if extended straight and a straight line connecting points on the curb lines each of which is thirty feet (30') in distance from the point of intersection. Curb line shall be measured from the back of each curb.

8.9 Site Lighting

8.9.1 Lighting Trespass

Glare shall be eliminated so that roadway traffic wiill not be impacted by any ligting installed by the development.

Lighting must not be oriented onto adjacent properties, streets, or sidewalks.

The maximum light level of any light fixture must not exceed 0.1 footcandles measured at the property line at any given point for adjacent commercial property and 0.05 footcandles measured at the property line at any given point for adjacent residential property (including a residential zoning district or a parcel containing a residential use).

Lights must be "full cut off" or "fully shielded" fixtures.

8.9.2 Design

Light fixtures within parking areas may be not higher than 20 feet.

Light fixtures within pedestrian areas may be not higher than 15 feet.

8.9.3 Building and Security Lighting

Lighting fixtures must be selected, located, aimed and shielded so that direct illumination is focused exclusively on the building facade, plantings, and other intended site features and away from adjoining properties and the street right-of-way.

All wall pack fixtures must be full cutoff fixtures.

Only lighting used to accent architectural features, landscaping or art may be directed upward, provided that the fixture is located, aimed or shielded to minimize light spill into the night sky.

8.9.4 Outdoor Sales and Canopy Lighting

Outdoor sales and gas station service canopy lighting shall be aimed downward and installed such that the center of the fixture's luminous opening is flush with or recessed into the canopy ceiling.

All lighting from the canopy must be substantially confined to the ground area directly beneath the perimeter of the canopy.

All exterior lighting for canopies, and/or service areas shall be of an indirect nature, emanating only from fixtures located under canopies, under eaves on the principal building or at ground level in the landscaping. Exterior lighting shall be arranged and shielded so there shall be no glare or reflections onto adjacent properties or street rights-of-way.

8.10 Outdoor Storage and Display of Merchandise

8.10.1 Outdoor Storage for Nonresidential Uses

1. Where Permitted. Outdoor storage for nonresidential uses is permitted in the C-2 and I districts. Similar outdoor storage for AG-1 and AG-2 districts shall refer to Article 5.1.3 and Article 5.2.3, respectively. The remainder of Article 8.10 shall apply to the C-2, and I districts.
2. Location. Outdoor storage areas may be adjacent to the principal building and shall be located in side or rear yards, provided that all minimum setback depths are maintained.

3. Maneuvering of Inventory. The site shall be of adequate size, shape, and design to ensure:

    a. All maneuvering of inventory will be contained on-site;
    b. No inventory will be backed onto the site from the public right-of-way;
    c. All on-site maneuvering shall occur without encroaching onto adjacent properties or rights-of-way; and
    d. Inventory will be maneuvered without conflicting with vehicular use areas.

4. Screening. Outdoor storage must have screening of not less than 6 feet and no more than 20 feet in height. Stored materials must be a minimum of 2 feet less than the height of the screening. If the lot adjoins a residential district, screening shall be provided at the lot lines sufficient to protect, on a year-round basis, the privacy of adjoining residential uses.
5. Hazardous Materials. No hazardous or toxic materials are permitted in any outdoor storage, except for materials that are the by-product of industrial manufacturing and are safely removed from the premises within 48 hours of production.
6. Permitted Items. Items normally appurtenant to the establishment's permitted uses.

8.10.2 Outdoor Display of Merchandise

Outdoor display for this section shall be defined as the outdoor display of products available for sale, such as (but not limited to) propane gas storage racks, ice machines, kiosks, or other merchandise that is clearly intended for sale.

1. Where Permitted. Outdoor display of merchandise is permitted in C-2 and I districts.
2. Associated Use. The outdoor display area shall only involve items for sale by a business located within a permanent structure or designated area on the same site.
3. Location. Outdoor display areas shall be located only in the buildable area of the site formed by the required setbacks.
4. Area of display

    a. Vehicle Sales, Leasing, and Rental. Customary passenger vehicles, trailers (excluding truck beds), recreational vehicles, motor vehicles, and other motorized machinery and equipment for sale or lease may be displayed on an unlimited basis outside a building on a paved display area

or lot, provided that the display area shall not be placed within a required parking/paving setback area and shall not reduce the capacity of a parking lot below that required by Article 7 of these regulations. Such vehicles must be clean, operational, functional, and readily roadworthy. No items shall be stacked.

b. All other uses: All display merchandise must be within 10 feet of the building frontage, while still maintaining the entire sidewalk and pedestrian right-of-way. No more than 80 percent of the horizontal length of the building façade shall have outdoor display items. Stacked merchandise shall be no taller than four feet high. Merchandise on racks or shelves shall be no higher than six feet high.

9 Board of Zoning Adjustment

9.1 Creation, Membership

The Village Board of Zoning Adjustment is hereby created and shall be known as the Village Board of Zoning Adjustment. The members of said board shall be appointed by the Village Board. The legislative body of a village may provide by ordinance that it shall constitute a board of adjustment. (Ref. 19-911 R.S. Neb.)

One (1) member only of said board shall be appointed from membership of the Planning Commission and the loss of membership on the planning commission by such member shall also result in the immediate loss of membership on the Village Board of Zoning Adjustment.

Said board shall consist of five regular members, plus one additional member designated as an alternate who shall attend and serve only when one of the regular members is unable to attend for any reason, each to be appointed for a term of three (3) years and removable for cause by the Village Board upon written charges and after public hearings. Vacancies shall be filled for the unexpired terms of any member whose terms becomes vacant.

9.2 Meetings

Meetings of the Board of Zoning Adjustment shall be held at the call of the Chairperson and at such times as the Board may determine. The Board shall keep minutes of its proceedings, showing the vote of each member upon each question, or if absent or failing to vote, indicating such fact, and shall keep records of its examinations and other official actions, all of which shall be immediately filed in the office of the Village Clerk and shall be a public record.

9.3 Interpretations and Variances

9.3.1

The Board of Adjustment shall, subject to appropriate conditions and safeguards as specified in these regulations, have the following powers (Ref. 23-168.01 R.S. Neb.):

To hear and decide appeals where it is alleged there is error in any order, requirement, decision or determination made by an administrative official or planning commission based on or made in the enforcement of any zoning regulation or any regulation relating to the location or soundness of structures;

To hear and decide, in accordance with the provisions of any regulation, requests for interpretation of any maps, or for decisions upon other special questions upon which the Board is authorized by any such regulation to pass; and

Where by reason of exceptional narrowness, shallowness, or shape of a specific piece of property at the time of adoption of the Zoning Ordinance, or by reason of exceptional topographic conditions or other extraordinary and exceptional situation or condition of such piece of property, the strict application of any enacted regulation under this act would result in peculiar and exceptional practical difficulties to, or exceptional and undue hardships upon the owner of such property, to authorize, upon appeal relating to the property, a variance from such strict application so as to relieve such difficulties or hardships, if such relief may be granted without substantial detriment to the public good and without substantially impairing the intent and purpose of these zoning regulations, but no such variance shall be authorized unless the Board finds that:

The strict application of the regulation would produce undue hardship;

Such hardship is not shared generally by other properties in the same zoning district and the same vicinity;

The authorization of such variance will not be of substantial detriment to adjacent property and the character of the district will not be changed by the granting of the variance; and

The granting of such variance is based upon reasons of demonstrable and exceptional hardship as distinguished from variations for purposes of convenience, profit or caprice.

9.3.2

No variance shall be authorized unless the Board finds that the condition or situation of the property concerned or the intended use of the property is not of so general or recurring a nature as to make reasonable and practicable the formulation of a general regulation to be adopted as an amendment to the zoning regulations.

9.3.3

In exercising the above-mentioned powers such Board may, in conformity with the provisions of said sections, reverse or affirm, wholly or partly, or may modify the order, requirement, decision or determination appealed from, and may make such order, requirement, decision or determination as shall be proper, and to that end shall have all the powers of the officer from whom the appeal is taken. The concurring vote of four (4) members of the board shall be necessary to reverse any order, requirement, decision or determination of any such administrative official, or to decide in favor of the applicant on any matter upon which it is required to pass under any such regulation or to effect any variation in such regulation.

9.4 Procedures for Requesting Variance

The procedures to be followed by the Board of Zoning Adjustment shall be as follows.

9.4.1

Appeals to the Board may be taken by any person aggrieved or by any officer, department, governmental agency affected by any decision of the zoning administrator. Such appeal shall be made within ten (10) days from the date of decision by any official or department. The appeal filed in writing shall define the appeal being requested and the grounds therefor. The officer from whom the appeal is taken shall forthwith transmit to the Board of Zoning Adjustment all the paper constituting the record upon which the action appealed from was taken.

9.4.2

The Chairperson of the Board shall set a hearing within thirty (30) days of receipt of the appeal. The time, date, place of the hearing, and description of the request shall be published in a local newspaper of general circulation ten (10) days prior to the actual hearing. The Board shall also notify the interested parties in the case of the hearing date, time and place.

9.5 Appeals from the Board of Zoning Adjustment

Any person or persons, jointly or separately, aggrieved by any decision of the Board of Zoning Adjustment, or any officer, departments, board or bureau of the Village, may seek review of such decision by the district court for the Village in the manner provided by the laws of the State and particularly by Section 23-168.04.

10 Administrative Provisions, Enforcement and Fees

10.1 Zoning Administrator

This ordinance shall be enforced and administered by a Zoning Administrator who shall be appointed by the Village Board and who may be provided with the assistance of such other persons as the Village Board may direct in order to carry out the following duties and responsibilities:

Recommends approval or disapproval of all building permits and occupancy certificates to the Village Board for their consideration.

Conduct inspections of buildings, structures and uses of land to determine compliance with the provisions of this ordinance.

Receive, file and forward to the Board of Zoning Adjustment the records in all appeals for variances.

Maintain permanent and current records of the Zoning Ordinance including but not limited to, all zoning maps, amendments, special use permits, variances, appeals and applications thereof and records of hearings thereon.

Prepare and have available in book, pamphlet or map for each year.

The compiled text of the Zoning Ordinance and amendments thereto, including all amendments adopted through the preceding December 31; and

A zoning map or maps, showing the zoning districts, divisions and classifications in effect on the preceding December 31.

Whenever the Zoning Administrator shall find that any of the provisions of this ordinance have been or are being violated, he/she shall notify in writing the person responsible for such violation, indicating the nature of the violation and ordering the action necessary to correct it. He/she may order discontinuance of illegal use of land, buildings or structures; removal of illegal buildings, structures or additions or alterations thereto; discontinuance of any illegal work being done; or take any other appropriate action authorized by this ordinance to insure compliance with, or to prevent violation of, its provisions.

10.2 Building Permits Required

10.2.1 General

No building or other structure shall be erected, moved, added to, or structurally altered without a building permit first having been without a permit first having been recommended by the Zoning Administrator to the Village Board to approve or disapprove the permit. No permit shall be issued until approved by the Village Board. No building permit shall be issued unless the proposed construction or use is in conformance with all of the provisions of this ordinance and with all other applicable codes, regulations and laws of the Village of Cortland and with all orders, and variances lawfully issued by the Board of Adjustment. A building permit shall not be required for agricultural (nonresidential) buildings or structures in the AGR Agricultural Districts or for improvements which have a value of one thousand dollars ($1,000) or less. Construction must begin within ninety (90) days of issuance of the permit. The building permit will be valid for a period of two (2) years.

10.2.2 Application for a Building Permit

All applications for a building permit shall be accompanied by a plot plan showing the location, ground area, height and bulk of all present and proposed structures, additions, parking areas and site improvements; the actual dimensions and shape of the lot lines; the uses to be built upon; the building lines in proposed structures or additions; and any other reasonable and pertinent information as may be required by the Zoning Administrator or the proper enforcement of this ordinance.

10.2.3 Approval or Disapproval of Permit

The Zoning Administrator shall examine all applications for building permits, including plans, specifications and documents filed therewith and shall recommend to the Village Board to either approve or disapprove such application within thirty (30) days of receipt of same. Upon approval and receipt of required fees, the Zoning Administrator shall promptly issue the building permit and shall affix his/her signature to the permit and the plans and mark the plans "Approved." Upon disapproval of the application, the Zoning Administrator shall refuse to issue the permit and shall state in writing on the plans the reasons for disapproval, affix his/her signature and mark the plans "Disapproved."

10.2.4 Appeal from Approval or Disapproval

An appeal from approval or disapproval of any application shall be made to the Board of Zoning Adjustment in writing within ten (10) days after the determination of the Zoning Administrator has been filed.

10.3 Certification of Occupancy Required

10.3.1 General

No building, structure or land shall be used or occupied, in whole or in part, nor shall any change made in the use or type of occupancy of an existing building or structure requiring a building permit, nor shall any change be made in the use of land, except to any use which is primarily agricultural, unless a certificate of occupancy shall be issued by the Zoning Administrator in accordance with this ordinance.

10.3.2 Temporary Certificate

Upon request, the Zoning Administrator may issue a partial certificate of occupancy for a period not to exceed ninety (90) days, for a building or structure or part thereof, before the entire work covered by the building permit shall have been completed, provided such portion or portions as have been completed may be occupied safely without endangering life or the public welfare.

10.3.3 Application for Certificate of Occupancy

All applications for certificate of occupancy shall be made by the owner or his/her agent and shall be accompanied by an affidavit of the owner, registered architect, licensed professional engineer, or superintendent of construction who shall state that he has examined the approved plans of the structure, that said structure has been erected in accordance with the approved plans and that it complies with this ordinance and all local code and resolutions/ordinances governing building construction. The application and affidavit shall be filed with the Zoning Administrator.

10.3.4 Issuance of Certificate of Occupancy

Before issuing a certificate of occupancy, the Zoning Administrator shall examine all buildings, structures or sites for which an application has been filed for a building permit to construct, enlarge, alter, repair, remove, demolish, or change the use or occupancy. The Zoning Administrator shall maintain a record of all examinations and inspections, together with a record of findings of violations of the law.

10.3.5

certificate of occupancy shall be deemed to authorize, and is required for, both initial and continued occupancy and use of the building or land to which it applies, and shall continue in effect so long as such building or land is used as authorized in the certificate of occupancy.

10.4 Schedule of Fees

10.4.1

The schedule of fees shall be established for this Zoning Ordinance by the Village Board. The schedule of fees shall be posted in the office of the Zoning Administrator and may be altered or amended only by the Village Board. Until all applicable fees, charges and expenses have been paid in full, no action shall be taken on any application or appeal.

11 Amendment

11.1 General

The Village Board may from time to time supplement, change or generally revise the boundaries or regulations contained in this ordinance. A proposal for such amendment may be initiated by the Village Board, Planning Commission or upon application of the owner of the property affected. A filing fee established by the Village Board is required for each application to be considered by the Planning Commission.

11.2 Submission to Planning Commission

All such proposed amendments shall first be submitted to the Planning Commission for recommendation and report. Upon the development of tentative recommendations, the Planning Commission shall hold a public hearing thereon and shall cause an accurate written summary to be made of proceedings, and shall give notice in like manner as that required for the original zoning recommendations. Such notice shall fix the time and place for such hearing and contain a statement regarding the proposed changes in regulations or restrictions or in the boundary of any district.

If such proposed amendment is not a general revision of an existing provision of this ordinance, and will affect specific property, it shall be designated by legal description and general street location and in addition to such publication notice, written notice of such proposed amendment shall be mailed to all owners of lands located within three hundred (300) feet of the area proposed to be altered and an opportunity granted to interested parties to be heard.

11.3 Amendment Consideration and Adoption

The procedure for the consideration and adoption of any such proposed amendments shall be in like manner as that required for the consideration and adoption

of the ordinance except herein before or herein after modified. For action on zoning amendments, a quorum of the Planning Commission is more than one-half (1/2) of all the members. A vote either for or against an amendment by a majority of all the Planning Commission members present constitutes a recommendation of the commission; whereas a vote either for or against an amendment by less than a majority of the Planning Commission present constitutes a failure to recommend.

When the Planning Commission submits a recommendation of approval or disapproval of such amendment, the Village Board, if it approves such recommendation, may either adopt such recommendation by ordinance or take no further action thereof as appropriate. In the event the Planning Commission submits a failure to recommend, the Village Board may take such action as it deems appropriate. Upon receipt of a recommendation of the Planning commission which the Village Board disapproves, the said governing body shall return such recommendation to the Planning Commission with a statement specifying the basis for disapproval, and such recommendation shall be considered in like manner as that required for the original recommendation returned to the Planning Commission. If such amendment shall affect the boundaries of any district, the ordinance shall define the change or the boundary as amended, shall order the Official Zoning Map(s) to be changed to reflect such amendment, and shall amend the section of the ordinance incorporating the same and reincorporate such Map as amended.

11.4 Protest

Regardless of whether or not the Village Board approves or disapproves a proposed zoning amendment or fails to recommend, if a protest against such amendment be filed in the office of the Village Clerk within fourteen (14) days after the date of the conclusion of the public hearing pursuant to said publication notice, duly signed and acknowledged by the owners of twenty percent (20%) or more either of the area of the lots included in such proposed change, or of those immediately adjacent in the rear thereof extending one hundred (100) feet therefrom, or of those directly opposite thereto extending one hundred (100) feet from the street frontage of such opposite lots, such amendments shall not become effective except by the favorable vote of two-thirds (2/3) majority of the Village Board.

12 Complaints, Penalties, Remedies

12.1 Complaints Regarding Violations

Whenever a violation of this ordinance occurs, or is alleged to have occurred, any person may file a written complaint. Such complaint stating fully the causes and basis thereof shall be filed with the Zoning Administrator. He/she shall record properly such complaint, immediately investigate, and take action thereon as provided by these regulations.

12.2 Penalties

The owner or agent of a building or premises in or upon which a violation of any provisions of this ordinance has been committed or shall exist or lessee or tenant of an entire building or entire premises in or upon which such violation shall exist, shall be guilty of a misdemeanor. Each and every day that such violation continues after notification shall constitute a separate offense.

Nothing herein contained shall prevent the Village from taking such other lawful action as is necessary to prevent or remedy any violation.

12.3 Remedies

In case any building or structure is erected, constructed, reconstructed, altered, repaired, converted, or maintained; or any building, structure or land is used in violation of these regulations the appropriate authorities of the Village may institute any appropriate action or proceedings to prevent such unlawful erection, construction, reconstruction, alteration, repair, conversion, maintenance or use; to restrain, correct or abate such violation; to prevent the occupancy of said building, structure or land; or to prevent any illegal act, conduct, business or use in or about such premises.

13 Legal Status Provisions

13.1 Separability

Should any article, section or provisions of these regulations be declared by the courts to be unconstitutional or invalid, such decisions shall not affect the validity of this ordinance as a whole, or any part thereof other than the part so declared to be unconstitutional or invalid.

13.2 Purpose of Catch Heads

The catch heads appearing in connection with the foregoing sections are inserted simply for convenience, to serve the purpose of any index and they shall be wholly disregarded by any person, officer, court or other tribunal in construing the terms and provisions of these regulations.

13.3 Repeal of Conflicting Ordinances

All other ordinances and regulations in conflict with this ordinance are hereby repealed to the extent necessary to give these regulations full force and effect.

13.4 Effect Date

This ordinance shall take effect and be in force from and after its passage and publication according to law.